

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Admiral Gooding Center Technical and Event Administration Support Services in support of Naval Support Activity Washington (NSAW)

This solicitation is eligible to only Active Prime SeaPort MAC holders. If proposals are received from non SeaPort MAC holder it will not be evaluated.

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Base Year: Admiral Gooding Center Technical and Event Administration Support Services. Services shall be performed in accordance with the Performance Work Statement (PWS) . Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0002	Option I: Admiral Gooding Center Technical and Event Administration Support Services. Services shall be performed in accordance with the PWS. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0003	Option II: Admiral Gooding Center Technical and Event Administration Support Services. Services shall be performed in accordance with the PWS. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0004	Option III: Admiral Gooding Center Technical and Event Administration Support Services. Services shall be performed in accordance with the PWS. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0005	Option IV: Admiral Gooding Center Technical and Event Administration Support Services. Services shall be performed in accordance with the PWS. Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 0006	FAR 52.217-8 Option: Admiral Gooding Center Technical and Event Administration Support Services. Services shall be performed in accordance with the PWS. Pricing Arrangement: Firm Fixed Price	6	Months		

Continuation of Description

PERFORMANCE WORK STATEMENT FOR EVENT AND INFORMATION TECHNOLOGY SUPPORT SERVICES IN SUPPORT OF NAVAL SUPPORT ACTIVITY WASHINGTON (NSAW)

1. BACKGROUND

1.1. The Naval District Washington (NDW)/Naval Support Activity Washington (NSAW) Admiral Gooding Center (AGC) is a prestige level facility on the historic Washington Navy Yard (WNY) and operates as a conference center for the United States Navy. The AGC is an ideal collaborative venue providing exemplary professional event support services and state-of-the-art technology. It is designed to enhance events with innovative technologies and has multiple facilities to accommodate events of varying sizes and purposes. It is an environment where clients can focus on thinking creatively, designing innovative solutions, making decisions and multiplying the force readiness factor for the United States Navy.

2. SCOPE/PURPOSE

2.1. The Contractor shall provide event and information technology (IT) support services. The Performance Work Statement (PWS) describes the requirements for providing support services for events, an interchangeable workspace, audio-video (AV), telecommunications, network administration, facility support services, and logistics.

2.2 The Contractor shall provide qualified support personnel to perform the task assignments onsite as enumerated below.

2.3 The Contractor shall perform required tasks while always maintaining a 100 percent continuity of operations at the AGC.

3. PERFORMANCE STANDARD

3.1. The performance standards serve as a basis for determining whether performance outcomes have been satisfactorily achieved and the delivery of service is considered acceptable performance outcomes.

3.2. The Contractor shall maintain continuous operations and ongoing full functionality of the AGC.

3.3. The delivery requirements shall be consistent with the needs of the mission of the AGC as identified by the Contract Officer's Representative (COR)/Task Manager.

3.4. All work shall conform to best practices suitable for prestige level conferencing and training centers.

3.5. Work must be performed on-site. Contractor support staff will be assigned to the AGC on a full time basis and will perform their duties within the NSAW footprint.

3.6. Assigned staff must be fully qualified in accordance with the criteria specified in the contract PWS.

3.7. AGC requires sufficient on-site Contractor support staff to accommodate multiple events held simultaneously and information technology.

3.8. Support services shall reflect innovative technological and event techniques employed to increase efficiencies.

3.9. The service and delivery requirements shall adhere to cyber security and physical security policies and instructions.

3.10. The Contractor must comply with all facets of the Risk Management Framework (RMF) and continuous monitoring processes and take necessary actions in order to attain/maintain an Authority to Operate (ATO) certification and accreditation of the AGC's audio visual network.

3.11. Technical and status reports shall be factually accurate and complete, reflect high quality and adhere to dates and deadlines.

3.12 The delivery requirements shall be consistent with needs of the mission as identified by the COR.

3.13 The Government will review and assess all work, deliverables and products. A statement of whether the work and deliverables met the Government's requirements will be required.

3.14. All data, deliverables and products produced under this contract shall belong to, and be the property of, the U.S. Government.

4. LOCATION/DESCRIPTION

4.1. The AGC is located at 1244 Patterson Avenue, South East, Washington Navy Yard, Building 22, Washington, D.C.

4.2. The AGC is designed to enhance events through attentive and responsive event support and timesaving technologies combined with innovative methodologies. It uses state-of-the-art infrastructure, Internet Protocol (IP)/analog audio and video, computer networking and telecommunication capability in comfortable surroundings.

4.3. Events are routinely held Monday-Friday, 7:00 am-5:00 pm. Events may extend past 5:00 pm and/or be held on weekends or, on some occasions, for 24 hours on continuous days.

4.4 The AGC can simultaneously provide a variety of conferencing activities and accommodate group sizes up to 275 event attendees.

4.5. Events requiring support services may occasionally be held off-site from the AGC within the NSAW footprint.

4.6. Events may be classified up to the secret level. The event room(s) for classified events will be fully functional at least 120 minutes prior to the event start time.

4.7 An event is a group of related activities generally occurring at the same time and place. Activities could include but not limited to seminars, plenary sessions, meetings, training sessions, workshops, conferences, group briefings and discussions, worldwide video conferencing such as MS Teams, integrated product/process teams, process improvement teams, business process reengineering, selection boards, senior executive and senior management leadership teams, strategic planning sessions, all hands, change of commands, full honors ceremonies, military court sessions, and off-sites.

4.8. On and off-site events may require video and still photography with same day production and delivery of final product.

4.9. Events regularly have Naval Flag Officer and/or Senior Executive Service level attendees.

4.10. Facility and conference components of the AGC are identified in Attachment A.

5. REQUIREMENTS

5.1. The overall performance standard shall be to maintain continuous operation and ongoing full functionality of the AGC. The priority of work and work tasks will be set by the COR. Tasks that require finite or intermittent Contractor efforts, the performance standard for routine tasks shall be completed within 48 hours, while urgent data calls, the complete response shall be as soon as possible, but not to exceed six hours.

5.2. The expertise required to support the events and activities of the AGC include but are not limited to technical support for IT, AV, telecommunications, video conferencing, network administration, facility services and design, logistics, administration, security, and cyber security.

5.3 The normal work schedule for the Contractor shall be during the hours of 6:00 am-5:00 pm Monday through Friday for event support. The Contractor shall be on board at all times during these hours. The Contractor shall also be on board during all client event hours of operation beyond the Monday through Friday 6:00 am to 5:00 pm normal work schedule. The Contractor shall provide a flexible work schedule as necessary to support all aspects of the events.

5.4. On the occasions when an event would require 24-hour multiple day support due to the security level of the event, a 24-hour team must be established to have qualified personnel on-site the entire time of the event.

5.5. The Contractor shall provide staff to support events occurring simultaneously at all event meeting rooms/locations.

5.6. The Contractor support staff shall be on site prior to, during and after the event point of contact (POC) and POC support staff depart from the AGC.

5.7. The Contractor support staff shall be available to the client at all times for the duration of the event.

5.8. The Contractor shall provide support within the NSAW footprint, as needed, of the following:

5.8.1. Audio and video set-up and operation

5.8.2. Digital video recording and production of ceremonies

5.8.3. Event support, including photography, for ceremonies

5.9. AGC provides coordination for the following AGC products and services:

5.9.1 Government telephone system components

5.9.2. Internet service providers by Navy Marine Corps Intranet (NMCI) and Navy GoWiFi (hardwired)

5.9.3. Video conferencing services

5.9.4. Satellite/Cable service

5.9.5 Security system

5.9.6. Building facilities support

5.9.7. Building Heating, Ventilation and Air Conditioning (HVAC) equipment and controls support (monitor and make adjustments)

5.10. Event Support

5.10.1. The Contractor shall provide support staff to ensure seamless, uninterrupted and successful event execution.

5.10.2. Provide support to the COR pertaining to technical aspects of supporting events including administrative and technical requirements, system types, etc.

- 5.10.3. Proper courtesy and military protocol shall be followed at all times.
- 5.10.4. Initiate corrective action as required to maintain continued system availability during events using best practices and in the timeliest manner possible.
- 5.10.5. Assist in defining clients' requirements and matching the appropriate AGC tools and configurations to meet these requirements.
- 5.10.6. Provide continuous on-site, real-time event and technical support before, during and at the conclusion of events, activities and technical dry runs.
- 5.10.7. Insure all aspects of the technology to be used during the event are appropriate, accommodating and clearly planned using technical dry runs.
- 5.10.8. Setup and configure audio and video in the event rooms to include, but not limited to, the following based on the clients' event requirements:
 - 5.10.8.1. Microphones - lapel, handheld, wired/wireless and/or tabletop
 - 5.10.8.2. Audio output devices - ceiling, wall and portable speakers
 - 5.10.8.3. Audio sources - microphones, NMCI laptops or client provided laptops or audio device and satellite receiver
 - 5.10.8.4. Audio devices - USB speaker and microphone conferencing units
 - 5.10.8.5. Video displays - Video walls and monitors
 - 5.10.8.6. Video sources - NMCI laptops, event provided laptops, video conferencing, event room cameras, satellite receivers, Blu-Ray/DVD player and/or video camera.
 - 5.10.8.7. NMCI laptops
 - 5.10.8.8. NMCI network drops and wireless network availability and Navy GoWiFi network drops
 - 5.10.8.9. Video conferencing and/or voice only teleconferencing
 - 5.10.8.10. Conferencing telephones and optional extension microphones
 - 5.10.8.11. Government telephone(s) option within event room
 - 5.10.8.12. Video or audio recording of event
 - 5.10.8.13. Presenter timer clock
 - 5.10.8.14. Audio/video patching through floor box system in event rooms for client provided video recording or stenographer equipment
 - 5.10.8.15. Power outlet availability at event tables
- 5.10.9. Using Microsoft Visio, document scaled table and chair layout static room configurations for each event room in order to maintain comfortable working space for each event attendee and proper areas of flow for entering, moving within the room and egress.
- 5.10.10. Modify Microsoft Visio scaled room configurations as needed for special events and assure that all layout and technical elements of the event are noted on the layout.
- 5.10.11. Ensure all AV, video conferencing and IT requirements are incorporated onto the Microsoft Visio scaled event room configuration layouts.
- 5.10.12. Set up the interchangeable workspace event rooms. The room set-up requires lifting of tables, chairs, 8'x16' platform stage and safety rails, computer monitors, and keyboard/video/mouse combination sets. Chair and table dollies and automotive floor creeper are available to assist with this process. Lifting and pushing will be required for moving the 4'x12' sectional rolling room divider wall partitions. Some events will require climbing ladders to adjust/install/remove equipment.
- 5.10.13. Configure and/or reconfigure room chairs and tables for pre- and post- event layouts. This may involve full size, half width, round tables and rolling and stackable chairs, portable room dividers and floor to ceiling moveable wall partitions.
- 5.10.14. Vacuum event room and common areas, assure tabletops are clean and backs of chairs are dusted following event room table and chair re-configurations.
- 5.10.15. Maintain the AGC's business center for clients and event attendees.
- 5.10.16. Ensure all IT requirements are setup, made functional and tested during the event room setup process. All AV, telephone and IT elements must be completed prior to the start of the event.
- 5.10.17. Configure and/or reconfigure then test all IT and AV equipment within event room as required to meet technical requirements. This may involve setting up laptop docking stations, keyboards, mice, monitors, network/telephone/audio/video patch cables, floor box lids, conferencing

phones, video peaking units, rolling monitors, rolling speakers, presenter time clock control unit, USB extenders, slide advance units, wired/wireless tabletop microphones and/or handheld microphone stands.

5.10.18. Post signage for the electronic and hard copy displays and placards.

5.10.19. Verify all systems are operational at the beginning of each morning and afternoon event sessions to include microphone batteries are at 100% capacity.

5.10.20. Setup and configure client laptops to interface with audio, visual, telecommunications, internet providers, video conferencing systems in support of events. This includes providing technical support to clients/attendees that require and/or use the AGC products and services.

5.10.21. Assist clients and remote attendees for all connectivity, audio and video issues during events.

5.10.22. Align and assure highest practical resolution possible and optimize brightness/contrast/hue settings for all video display devices in the center.

5.10.23. Adjust and balance microphones, microphone preamplifiers, receivers and mixing units for clearly audible/low noise voice reinforcement within event rooms and electronic collaboration systems, telephone conferencing, and video recording cameras. This shall be maintained at a level that will not reach audio feedback levels.

5.10.24. Reconfigure telephones and USB microphone speakers in support of events and/or facility functions as required.

5.10.25. Operate the AV control system and recommend to the COR updates for the functionality of the system to represent any changes in event room location, input/output status and AV switch assignments as required to support an event or the addition/change of technical capabilities with the Center.

5.10.26. Operate the lighting and AV systems as required by the event needs. Lighting on/off/dimming control required for breaks and during videos.

5.10.27. Operate video control required to send presentations, documents, agendas, spreadsheets, administrative remarks, seals/logos, videos, laptops, video conferencing, document cameras, media content, Blu-ray, satellite feeds, flat panels, video, remote collaboration sites and video recording feeds.

5.10.28. Operate audio control required to send/adjust sound from lapel/handheld/tabletop/ceiling microphones, workstation/laptop outputs, VTC, Blu-ray, satellite receivers to speakers, assisted listening, video camera inputs and audio digitizing units.

5.10.29. Operate the lighting, audio and video systems as required by the facility's needs. This will include opening and closing, news/weather media distribution, etc.

5.10.30. Provide personnel to support video recording of events and next-day post video production to include recorded videos edited and compiled to fit on DVDs. Professional looking labels shall be produced and printed on the DVDs.

5.10.31. Provide personnel to support on and off-site photography and video recording of NDW/NSAW events and ceremonies. Provide on-site personnel for same-day post video production to include recorded videos edited and compiled to fit on one DVD and still images selection/editing to create best-of compilation CD. Professional designed labels shall be produced and printed on the DVD and CD.

5.10.32. Provide technical support to analyze emergent or client-reported problems and to effect corrections as required.

5.11. Technical Support - Information Technology, Audio Visual and Telecommunications

5.11.1. The Contractor assigned onsite support staff must have in-depth knowledge, skill sets and experience to perform the tasks, responsibilities and requirements as detailed below for the hardware equipment, software and systems to include but not limited to those listed in Attachment B and any subsequent changes.

5.11.1.1. IT/AV LAN services

5.11.1.2. AV and LAN systems integration

5.11.1.3. Network administration, policies and implementation

5.11.1.4. Audio, video and AV/IT capabilities

5.11.1.5. Maintenance and troubleshooting/repair

5.11.1.6. Design, specification, installation set-up and configuration

5.11.1.7. Upgrade/refresh hardware equipment, software and systems

5.11.1.8. Configuration management and track/report

5.11.1.9. Systems to include Dante Audio Network, Crestron control systems, Cisco switches (multicasting), AMX switching and control, audio amplification, configuration, Biamp audio switching and control, Shure microphones, and the audio video infrastructure.

5.11.1.10. Initiate, update, sustain and renew RMF through the continuous monitoring and accreditation cycle

5.11.1.11. Risk Management Framework (RMF) processes for attaining/maintaining an Authority to Operate (ATO) accreditation for compliance and in accordance with DoN, DoD and federal policies.

5.11.1.12. Information System Security Engineer (ISSE) responsibilities for the RMF continuous monitoring processes and ongoing compliance with security requirements

5.11.1.13. System documentation

5.11.1.14. Enterprise Mission Assurance Support Service (eMASS)

5.11.1.15. Policies and implementation

5.11.1.16. Artifacts

5.11.1.17. Diagrams and Schematics

5.11.1.18. Information Vulnerability Management

5.11.1.19. Security Compliance

5.11.1.20. Cyber Security Management

5.11.1.21. Vulnerability Scanning

5.11.1.22. Validation and Control Assessment

5.11.1.23. Malware Protection - Definitions and Updates

5.11.1.24. Configuration Management

5.11.1.25. Document Review

5.11.1.26. Asset Management

5.11.1.27. Continuous Improvement

5.11.1.28. Risk Management

5.11.1.29. Plan of Actions and Milestones (POAMs)

5.11.1.30. Software and Firmware Updates

5.11.1.31. Security Technical Implementation Guides (STIGS)

5.11.1.32. Security Reference Guides (SRGs)

5.11.1.33. Information Assurance Vulnerability Alerts (IAVAs),

5.11.1.34. Security Content Automation Protocol (SCAP)

5.11.1.35. Assured Compliance Assessment Solution (ACAS) Scans

5.11.1.36. Secure Host Base (SHB) and Host Base Security System (HBSS)/malware functions

5.11.2 Attachment B is subject to change and will track with Department of Navy (DoN) and Department of Defense (DoD) policy.

5.11.3. Listed requirements/responsibilities apply to any and all new hardware, software and/or systems acquired by the AGC during the contract period.

5.11.4. Ensure integrity and operational status of all AV network and software prior to, during and upon conclusion of events.

5.11.5. Monitor and maintain performance of the AV network during events.

5.11.6. Provide network administration in the form of configuration management, back-ups, archiving and performance monitoring for the AV network. Notify the COR of any issues.

5.11.7. Perform network administration functions for Windows 10 or later network systems, Enterprise LTSC and Linux operating systems in compliance with the IT and cyber security requirements of the DoD, DoN, NDW and NSAW.

5.11.8. All work shall conform to industry best practices when possible within the DoD and DoN guidelines. Coordinate with the COR for all aspects of the requirements/responsibilities listed in this PWS related to configuration changes to all non-NMCI systems, including Windows systems, Cisco

switches and other network devices operating in the environment as required.

5.11.9. Advise, develop and forward recommendations to the COR for:

5.11.9.1. Technical requirements and technical improvements.

5.11.9.2. Improvements and upgrades to operating systems, hardware and software.

5.11.9.3. Design, specify, setup, install, configure, maintain, track/report, diagram and operate.

5.11.9.4. Problem solving, researching and maintaining spreadsheet accuracy, and continuous effective operation of supported systems.

5.11.10. Provide operations and maintenance of hardware platforms, operating systems support, backup systems, and network operations support.

5.11.11. Keep up-to-date and be knowledgeable of all the latest versions of the hardware, software, firmware and systems, as they are made available by the manufacturer and/or vendors.

5.11.12. Provide support for installation of new software applications and upgrades to existing software applications when approved by the COR.

5.11.13. Install and test all software and firmware with COR concurrence. Validate operational availability.

5.11.14. Diagnose and resolve applications software and firmware problems.

5.11.15. Install and configure operating systems, hardware, software and peripheral devices according to NDW IT standards with the approval of the COR.

5.11.16. Perform backups and backup files to guarantee data recovery in the event of failure of the AV network for both local and off-site data storage of backups.

5.11.17. For continuous monitoring, check application logs, firewall logs and system logs and anti-malware scan results. Run Tenable ACAS scans and SCAP and address any findings, update switch IOS, implement STIGS and SRGs.

5.11.18. Maintain the DoD Secure Host Baseline (SHB) and Host Based Security System (HBSS)/malware protection systems.

5.11.19. Capture metrics regarding cyber security compliance to include IAVAs, cyber security controls, electronic spillage and privacy disclosures.

5.11.20. Provide desktop and laptop setup, maintenance and configuration management.

5.11.21. Keep all hardware and software in repair, perform routine maintenance as required, and recommend upgrades to equipment, as necessary.

5.11.22. Perform routine maintenance and repair as required to maintain operating efficiency of the AV equipment and AV network. Report problems beyond routine maintenance and repair to the COR immediately.

5.11.23. Maintain all IT, audio, video, AV network and telephone equipment. This may include, but not be limited to, assuring proper airflow clearances, changing filters, cleaning lenses/screens/filters, providing UPS or filtered power sources, replacing batteries, tracking maintenance and licensing agreements, troubleshooting, coordinating with manufacturer technical support or repair technicians.

5.11.24. Maintain the LED video walls and monitors. Notify the COR immediately of any issues. Resolve issues as soon as feasible in a manner seamless to the event.

5.11.25. Maintain, repair, and upgrade AV systems, and diagnose and fix problems or potential problems with the network and its hardware, software and systems.

5.11.26. Provide technical support to troubleshoot hardware, software and network problems.

5.11.27. Identify reoccurring problems, notify the COR and resolve.

5.11.28. During events, perform immediate troubleshooting/repair functions for professional audio, video, and telephone systems.

5.11.29. Notify the COR as soon as practicable of any issues requiring troubleshooting of IT, audio, video, telephone and video conferencing systems and the resolution.

5.11.30. For purposes of all IT, RMF, network administration, AV, telephone and systems, systems refresh and/or to add new capabilities, the Contractor shall recommend to the COR for approval any configurations/reconfigurations, system integration, installation, set-up, operation, cabling, diagram, administration and upgrading/refreshing of hardware equipment, software and systems, and permanent changes.

5.11.31. The Contractor will assist in the system design and technical specifications recommended options while coordinating closely with the COR.

5.11.32. Provide to the COR technical documentation and drawings, POA&Ms and other documents as needed for system changes.

5.11.33. Obtain technical guidance and approval from the COR for any changes, installation and/or integration of components/software to the IT, AV and/or telephone equipment. Notify the COR at the completion of any of these.

5.11.34. Network upgrades will be an on-going effort to ensure that the network stays current or near current with new technologies and to meet cyber security requirements. All upgrades shall be reflected in internal documents, reports and inventories.

5.11.35. Assist in the planning of any transition or obsolete equipment. Validate the specific hardware and software requirements for the designed network. Identify potential transition plan schedule changes. Coordination support may involve logistics, asset configuration and configuration management.

5.11.36. Install and integrate IT, AV and telephone equipment and associated infrastructure components such as cabling, connectors, racks, terminals /jacks, interface boxes and detailed labeling for any required changes to capabilities within the Center. Notify the COR prior to and upon completion.

5.11.37. Run cables/cabling throughout the workspace and be prepared to generate custom length Ethernet cables and terminate them for use as required. Contractor will navigate under the subfloor space for the purpose of running various cables throughout the Center for connectivity purposes. Cables include but are not limited to copper and fiber Ethernet, Coax, and XLR audio cables.

5.12. Facility Services and Design

5.12.1. The AGC is to be maintained as a professional Center with prestige level appearance. Take the necessary steps to ensure the general cleanliness of the AGC's spaces - event rooms, hallways, common areas, storage areas, kitchen, and office spaces, which involves vacuuming, mopping, polishing, dusting, trash removal, recycling, bright work, glass cleaning, etc. Areas include the entire second floor and first floor lobby and registration desk.

5.12.2. Identify and document facility-related safety concerns. Report these concerns to the COR immediately.

5.12.3. Conduct daily end of day checks of the safe log that that specifies reason why it was necessary to open and facility security is to assure that each area is physically secured at the end of each workday. Support staff that secure each area are to check-off and sign out the appropriate areas on the end of day log.

5.12.4. Coordinate facility service calls and emails with the COR for the NSAW NAVFAC facilities office. Assist NSAW repair staff in accessing the situation and relaying the history regarding the issue. Service calls may include structural, plumbing, HVAC, lighting, safety, painting, elevator, and electrical maintenance. Maintain records of all service calls and assure that all facilities support contractors sign into the visitor log upon arrival.

5.12.5. Keep detailed records of maintenance trouble tickets and document results in MS Excel spreadsheet to include AGC ID number, NAVFAC ID number, date, time, type of repair, if safety issue, location, brief/detailed descriptions, if/when completed and notes.

5.12.6. Assist with the AGC's controlled facility access badging system and electronic devices lockers.

5.12.7. Operate and monitor the computerized facility management system for HVAC to provide a comfortable working environment within each event room and supporting areas. HVAC monitoring and control system to include Direct Digital Control (DDC) head-end workstation. Equipment monitoring and limited associated control of chillers, pumps, constant/variable volume air handler units, variable air volume above ceiling units, humidifiers, fresh air fans, exhaust fans, smoke evacuation fans, and computer room cooling units.

5.12.8. Make adjustments to the ambient room temperatures for constant volume Air Handling Units (AHU) and supply air temperatures for variable air volume AHUs, as necessary. Verify that chilled water system supply temperature is within specification every morning and immediately call/email in a trouble service ticket if not.

5.12.9. Make recommendations to the COR for repairs and preventive maintenance required for continuity of the HVAC system.

5.12.10. Maintain operation of all IQ Air filtration units using three filtration stages finishing with HEPA located throughout the Center. Replace filters as needed, track usage and recommend when replacement filters are needed to maintain proper inventory.

5.12.11. Assist with the reading, coordination and analysis of architectural, plumbing, electrical, mechanical, reflected ceiling, structural drawings and submitted cut sheets. Create scaled design schematic drawings, details, conceptual floor plans, reflected ceiling plans, elevations and section drawings using either AutoCAD, MS Visio or by hand for use in presenting recommendations/options.

5.12.12. Assist with the reading of the original design/build architectural, structural, plumbing, electrical and mechanical drawings with the COR and Naval Facilities (NAVFAC) engineers and provide copies of selected sections as required.

5.12.13. Assist the COR in the design process for any facility refresh efforts to include specifications such as hardware, finishes, light fixtures, etc.

5.12.14. Photograph areas of the AGC for use in addressing repairs and/or refresh/reconfiguration efforts.

5.12.15. Photograph event room setup configurations.

5.12.16. Edit photographs using Photoshop or similar software to superimpose other images for use in creating a visual representation of a design recommendation.

5.12.17. Capture layout/floor plans, schematics and drawings to include:

5.12.17.1. AGC scaled event layout plans

5.12.17.2. Collaboratory Event Room, Strategic Planning Room, Planning room including all technical and administrative requirements

5.12.17.3. Event room setups including checklists

5.12.17.4. AV setup diagrams

5.12.17.5. Setup portable audio, video, microphone/sound, DV camera, etc.

5.12.17.6. Scaled equipment rack elevations

5.12.17.7. Scaled and detailed AV, telephone and AV network equipment

5.12.17.8. Patch panels for AV

5.12.17.9. IT and AV network diagrams

5.12.17.10. Overview/block diagrams of AV network

5.12.17.11. Switches

5.12.17.12. Devices by room

5.12.17.13. Scaled IT and AV floor plans

5.12.17.14. Equipment, racks and staff furniture

5.12.17.15. Wireless Access points

5.12.17.16. Facility access control and monitoring

5.12.17.17. Cleared areas for secure event(s)

5.12.17.18. Scaled facility floor plans, elevations and details

5.12.17.19. Floor plans with square footages noted

5.12.17.20. Floor plans with furniture layout options

5.12.17.21. Floor plans with carpeting square foot areas detailed

5.12.17.22. Floor plans with painted wall square foot areas detailed

5.12.17.23. Facility floor plans, elevations and details

5.12.17.24. Floor plans for storage

5.12.17.25. Scaled floor plans for emergency egress and room capacity.

5.13. Logistics

5.13.1. The Contractor shall maintain and keep in good working order, all equipment owned by the Government.

5.13.2. Assist with the documentation of usage rates of consumables through periodic audits to project future expenditures and provide recommendations and purchase quotes. Track and obtain quotes for maintenance and service contracts for network hardware/software, AV equipment, filtration units and other items as required.

5.13.3. Assist the COR in identifying and documenting administrative and technical requirements to include cost proposals, justifications and quotes.

5.13.4. Produce technical documents such as design drawings and performance specifications, obtain quotes from vendors, manufacturers and approved sources and compile quote information in spreadsheets for the COR to use in the procurement process.

5.13.5. Assist with maintaining the records of inventories to include plant property, equipment, hardware and software.

5.13.6. Coordinate with the COR to ensure the inventory records accurately reflect the current inventory at the start of the contract, and, subsequently, an annual inventory audit prior to the end of the base and option years and as required.

5.13.7. Assist with inventory of items received, inputting data relative to items received into the spreadsheet and affixing property labels as appropriate.

5.13.8. Assist with asset management and physical inventory control.

5.13.9. Assist with maintaining and updating the inventory. Fields to be maintained in the spreadsheet may include Category, Description, Location, Manufacturer, Model, Barcode, Serial Number, Date Acquired, Refresh, Estimated Cost, Refresh Cycle, Refresh Date, Audit Date, and Working

Status.

- 5.13.10. Assist in maintaining physical location documentation of all NMCI assets. This includes wall plates, wireless nodes, switches, patches and printers.
- 5.13.11. Identify and track all equipment and hardware/software maintenance agreements and licenses, to include expiration dates.
- 5.13.12. Participate in software updates of all NMCI systems to follow DoN policies and procedures for cyber security patching and version upgrades.
- 5.13.13. Prepare AV network hardware for decommissioning and disposition when equipment has reached its End of Life, usefulness to the Center or reached a point of obsolescence.
- 5.13.14. In the case of hardware containing external hard drives and/or memory, those items must be under the guidance of the COR and prepared for a proper disposal. Items containing recyclable material (e.g. used UPS or other batteries) shall be prepared and coordinated with the COR for proper and safe recycling efforts through NSAW.
- 5.13.15. There may be occasional travel requirements to other facilities within the NDW region or other outside entities for deposition processing, package delivery/pickup, or in pursuit of expertise and proven practices used by other organizations.

5.14. Administrative Support

- 5.14.1. The Contractor shall prepare and review draft documents and correspondence as directed by the COR.
- 5.14.2. Compile a chronological history of events.
- 5.14.3. The Contractor shall create supporting documentation for data calls, explanations, briefs and charts, as needed. Research, data retrieval/filtering /compilation and analysis may be required. Formats of information to be provided shall be in Microsoft Word, Excel or other form as requested.
- 5.14.4. Draft analyses, presentations, notes, assessments and other material on various technical topics, as required for use by the AGC.
- 5.14.5. Maintain a file of onsite qualified personnel and qualified substitute resumes.
- 5.14.6. Maintain a file of completion of requisite Navy required training and Continuing Educational Units (CEUs) training and certifications.
- 5.14.7. Develop and analyze the performance metrics used to demonstrate and measure overall effectiveness, as needed.
- 5.14.8. Track action items and progress made towards bringing items to closure.
- 5.14.9. Provide support to the COR in scheduling events, maintaining the events calendar and documentation relative to events to include but not limited to planning meetings, technical dry runs, tours and off-site events.
- 5.14.10. Tours will typically cover all aspects of having an event hosted at the AGC including both administrative and technical issues.
- 5.14.11. Attend planning meetings and technical dry runs and coordinate event taskings with the COR.
- 5.14.12. Document clients' requirements in order to meet all of their AV requirements within the technical and spatial capabilities of the AGC.
- 5.14.13. Generate detailed pre- and post-event reports. At a minimum, this shall include the event requirements, the onsite and offsite video conferencing daily number of attendees, and notes on the technical aspects.
- 5.14.14. The Contractor shall provide documentation support to the COR for review and approval upon contract award, as required or directed and as updates occur. Final document deliverables must be submitted prior to the end of the contract year. The COR may specify additional delivery requirement dates. All items fall within the overall performance standard to maintain continuous operation and ongoing full functionality of the Center and are Contractor required deliverables. Format will be specified by the COR and may be hardcopy and in digital format using Microsoft Office software (unless otherwise specified).
- 5.14.15. The Contractor will draft, maintain and update documentation, which includes but not limited to the following documents:
 - 5.14.15.1. Quality Control Plan (QCP)
 - 5.14.15.2. System documentation. Develop, update and maintain documentation of IT, AV, RMF and telephone systems with schematics, diagrams, charts, elevations, and written descriptions. The documentation described herein shall be developed in accordance with IEEE/EIA 12207, "Information Technology-Software Life Cycle Processes" unless otherwise specified. Documentation will be provided by the Contractor in digital format using Microsoft Office software (unless otherwise specified). The Contractor will create, maintain and update the following documents:
 - 5.14.15.2.1. Admiral Gooding Center Technical Support Equipment Standard Operating Procedures
 - 5.14.15.2.2. System/Subsystem Specification
 - 5.14.15.2.3. User Interface Design Description
 - 5.14.15.2.4. Software Product Specification

5.14.15.2.5. Software Computer Operator/User Manual

5.14.15.2.6. Equipment Procedure Manual

5.14.15.2.7. Other Applicable Documents

5.14.15.2.8. Technical Reporting Requirements

5.14.15.2.9. Technical Documentation. Design drawings, performance specifications, diagrams, schematics, cabling, charts, elevations, tracking and reporting. Provide technical support for the development and maintenance of Plan of Action & Milestones (POA&Ms) to be used by the COR to monitor, manage and track the performance of IT, AV, telecommunications and video conferencing.

5.14.15.2.10. IT and AV Security and Cyber Security Reports and Incident Reporting. Metrics for cyber security compliance to include cyber security controls, SHB, HBSS, RMF, ACAS, privileged user accounts, electronic spillage and privacy disclosures. Provide immediate response to support all network or user incidents. Escalate to the COR and provide support to ensure the service is restored and the incident is documented and reported to all appropriate personnel.

5.14.15.2.11. Configuration. Identify, record and report all IT and AV components: hardware, software and associated documentation, drawings and configuration files, including their versions, specific configurations and item relationships.

5.14.15.3. Standard Operating Procedures (SOP). Assist the COR in the development, revision and update of SOP manual for all operational and procedural instructions to include emergency procedures, facility equipment, contingency plans and classified event procedures. Inputs shall be submitted to the COR for review and approval.

5.14.15.3.1. Operational Procedures

5.14.15.3.2. Opening and Closing Procedures

5.14.15.3.3. Dry Run, Planning Meeting and Event Procedures

5.14.15.3.4. Continuity of Operations Plan (COOP), Contingency Plans, and Disaster Plan

5.14.15.3.5. Safety Manual and Emergency Procedures

5.14.15.3.6. Systems Security Plans and Procedures

5.14.15.3.7. Computer Controlled Panel and Video Switching Systems Operational Procedures

5.14.15.3.8. Configuration Management Procedures, Technical Drawings, Specifications and POA&Ms and Other Related Documents

5.14.15.3.9. Security Training

5.14.15.3. 10. Classified Event Procedures

5.14.15.3.11. Facility Equipment Procedures

5.14.15.3.12. Network Administration Procedures

5.14.15.3.13. Audio Video Control System Procedures

5.14.15.3.14. Video Conferencing Procedures

5.14.15.3.15. Telephone Procedures

5.14.15.3.16. Lighting Control Procedures

5.14.15.3.17. HVAC/Digital Direct Control (DDC) Procedures

5.14.15.3.18. Cybersecurity Updates Procedures

5.14.15.3.19. Visio Procedures for Layout/Floor Plans, Schematics and Drawings

5.14.15.3.20. Inventory Procedures

5.14.15.3.21. Video Camera and Production Procedures

5.14.15.3.22. Technical Reporting Requirements and Procedures

5.14.15.3.23. Technical Reporting Requirements

5.14.15.3.24. Develop a complete user's tutorial for all equipment and patching for conducting events to include but not limited to the AV control

system, computer controlled facility panel and video switching systems.

5.14.15.4. Upon the COR's request, provide such additional reporting, documentation, schedules, illustrations and other graphics in a timely manner, as are requisites to the various task activities of the contract and will include, but not be limited to:

5.14.15.4.1. Technical reports, data compilations, evaluations, and analyses.

5.14.15.4.2. Testing procedures, requirements, assessments and schedules.

5.14.15.4.3. Specifications, tabulations, engineering drawings, multi-media graphics, designs, concepts, diagrams, and circuits.

5.14.15.4.4. Inventory, life-cycle maintenance requirements, guidelines, schedules, procedures, instructions, corrective actions, etc.

5.14.15.4. 5. Purchase descriptions, proposals, equipment illustrations, and cost documentation.

5.14.15.4.6. The Contractor shall prepare and submit documentation as required to include but not limited to the following:

5.14.15.4.7. Sustainment. IT, AV, video conferencing and telephone hardware and software status, repairs and routine maintenance. Completion of installation, integration of components/software.

5.14.15.4.8. Anti-virus Network Protection. Documentation of the status of the system must be kept and must discuss the findings relevant to cyber security for the center and maintaining reliable event operations. The documentation will include but not limited to Scan Failures and Anti-virus Definition Failures.

5.14.15.4.9. Network Patching Report. Report on the patching status for the week. Patching of all of the servers and workstations on the AGC network is a continuous process. The software and operating system patches address cyber security vulnerabilities alerts that are released routinely by DOD.

5.14.15.4.10. IT and AV Security Reports - Cyber Security and Incident Reporting. Metrics for cyber security compliance to include IAVAs, cyber security controls, SHB, HBSS, RMF, ACAS, electronic spillage and privacy disclosures.

5.14.15.4.11. Asset Management. Document inventory of AGC assets and usage rates of consumables through periodic audits to project future expenditures and provide recommendations.

5.14.15.4.12. Facility services, HVAC, Safety Concerns, and Security System. Report status of the facility. Annotate facility support service requests and issues related to safety, DDC/HVAC and security system and subsequent resolution.

5.14.15.4.13. Sustainment. Advisory notices for renewals of equipment and software maintenance and service contracts and end of life data. This includes but is not limited to quotes for maintenance and service contracts for network hardware/software, AV equipment, administrative and technical requirements to include cost proposals, justifications and quotes.

5.14.15.4.14. Security. Physical and event security, concerns and reporting of violations, if any.

5.14.15.4.15. Performance Metrics. Progress made, problem areas encountered, and recommendations, if any, for solutions. Recommendations may include solutions outside the scope of this contract.

5.14.15.4.16. Decisional Information. Analyses, presentations, notes, assessments, recommendations and other material on various technical topics, as required, for use by the AGC.

5.14.15.4.17. Events Spreadsheet. An overview of dates and brief notes related to events, dry runs, planning meetings, tours, off-sites and other scheduled evolutions.

5.14.15.4.18. Key Event Equipment Status and Issues

5.14.15.4.19. Other reports as specified by the COR.

5.14.15.4.20. All problems and concerns shall be reported to the COR.

5.15. Security

5.15.1. AGC Facility Security

5.15.1.1. All Contractors shall be familiar with and must comply with the AGC opening and closing procedures. This shall include maintaining nightly closing sheets, verifying all spaces cleared of personnel and secured along with arming/disarming, as required.

5.15.1.2. Contractor staffs' Information (name and telephone number) will be provided to the NSAW Duty Officer for the emergency roster as an after hour point of contact and may be required to respond to after hour security and/or emergency issues.

5.17.1.3. Comply with current DoD/DoN privacy policy and procedures. Guidance includes SECNAV 5211.5F and DONCIO applicable guidance.

5.15.1. 4. Immediately report known or suspected security violations/events, incidents and practices dangerous to security

5.15.1.5. Immediately report known or suspected electronic spillage of classified material to the COR for further reporting to the NDW Security

Manager and NDW/NSAW N6. Note that NDW must report the incident within one hour of discovery of a loss, compromise or theft.

5.15.1.6. Immediately report known or suspected unauthorized disclosure of Privacy Act/Personally Identifiable Information (PII) to the COR for further reporting to the NDW Security Manager. Note that NDW/NSAW must report the incident within one hour of discovery of a loss, compromise or theft of PII.

5.15.1.7. Assist with the control and usage of GSA approved storage containers (safes). Perform nightly check that all safe drawers are secure and maintain sign out sheet to that affect. Immediately report any unintended open drawers of the GSA approved storage containers to the COR for further reporting to the NDW Security Manager. Maintain safe log holdings sheet to track in detail all secure items that enter/leave the GSA approved storage container(s) along with contact information of the client having courier card and the AGC contractor verifying the materials entering or leaving the safe(s).

5.15.2. Security Requirements for Classified Events

5.15.2.1. Adhere to all applicable DoD and DoN guidance and directives to ensure all security measures for conducting classified events are in place, as required. This includes visitor control in accordance with governing Department of the Navy Information Security Program (ISP) IAW SECNAVINST 5510.36A and SECNAV M-5510.36 following Department of Defense (DoD) Manual 5200.01, Volumes 1-4, DoD Information Security Program. In the event of planned attendance by Foreign Nationals, security measures also conducted in accordance with DoD 5230.20.

5.15.2.2. The Contractor support staff shall configure the Center, technical infrastructure and equipment per DoD/DoN guidance and the AGC Event Security SOP.

5.15.2.3. Assist the COR with:

5.15.2.3.1 Coordinating with event client to assure all required security processes and procedures are followed.

5.15.2.3.2. Security operations for conducting classified discussions and/or presentations within the defined conference room.

5.15.2.3.3. Monitoring and controlling access.

5.15.2.3.4. Security access control system sufficient to operate, control and monitor internal spaces.

5.16. Cyber Security

5.16.1. The Contractor shall adhere to all applicable DoD and DoN cybersecurity directives and related guidance for prescribed methodologies while protecting information to support DoN missions. The Contractor shall use existing methods and processes in order to deliver secure, interoperable and integrated cybersecurity management and IT to the DoN and its contract support.

5.16.2. The Contractor shall ensure that all IT systems, software and interfaces meet Government security certification standards and requirements appropriate to the particular classification level of operation as specified by the DoN, DoD, or other cognizant Government authority for the purposes of the above mentioned DoN goals.

5.16.3. The Contractor shall provide the COR with counterpart point of contact (POC) for the NDW Security Manager and NDW/NSAW N6 Cybersecurity Manager. The cyber security POC shall:

5.16.3.1. Ensure all cyber security requirements are adhered to.

5.16.3.2. Ensure that the Contractor team is aware of all cyber security requirements.

5.16.3.3. Coordinate via the COR with the NDW/NSAW N6 Cyber Security Manager in all matters related to cyber security.

5.16.3.4. Fulfill the certification requirements DoDD 8570.01 and DoD 8570.01-M.

5.16.4. The Contractor shall also address these requirements within the Quality Control Plan.

5.16.5. The Contractor shall provide cyber security support to the AGC, working and coordinating with the COR and NDW/NSAW N6. The Contractor shall assure that all existing and future information systems (ISs) and AV systems, desktops, and corporate network components (wired & wireless), unclassified and classified, adhere to and are certified in accordance with the DoD Risk Management Framework (RMF). The Contractor shall maintain and provide documentation demonstrating compliance with all policies, guidance, and directives stipulated by the NDW/NSAW N6.

5.16.6. The Contractor shall implement and document security as directed and as the tools are provided by NDW/NSAW N6 including the following: complete security testing and monitoring of all AGC IT assets; providing reports on the results of testing and monitoring; identifying security levels and the type of data being handled; monitoring system activity; assigning and testing strength of passwords; and reviewing audit trails to ensure compliance with all applicable security directives and procedures.

5.16.7. The Contractor shall review unclassified logs and, if directed by NDW N6, classified logs, in association with the cyber security management to define actions to ensure measurements meet DoD and DoN security requirements.

5.16.8. The Contractor shall perform testing and risk assessment of the AGC AV systems and provide results and reports as required. In order to document actions taken to resolve all cybersecurity issues, the Contractor shall provide after-action reports periodically (including monthly cyber security status reports) and recurring reports as required per incident, IAVA, or special event/activity. The templates for each type of report may be provided by NDW/NSAW N6, the COR or Contractor.

5.16.9. The Contractor shall perform and document support services in satisfying user security, accreditation, and connectivity requirements. The Contractor shall implement DoD/DoN approved and cost-effective security countermeasures to protect AGC AV components.

5.16.10. The Contractor shall administer all security practices in accordance with NDW/NSAW N6 standards. Contractors shall coordinate, report, comply with, and resolve all relevant NDW/NSAW cyber security issues, including IAVAs, patches, updates, vulnerability test results, defensive configuration recommendations, scans, etc.

5.16.11. If directed by NDW/NSAW N6 to implement any new procedures and/or introduce new equipment, coordination for these changes may include participating in meetings, providing network drawings, schematics, LAN hardware and software information, reviewing proposed network engineering designs and providing comments relative to feasibility and possible operational impacts for each design element. Upon any network engineering design, the Contractor shall assist with the physical integration and element transitions while maintaining event operational continuity.

5.16.12. The Contractor shall be able to provide support for encryption equipment.

5.16.13. The Contractor shall prepare and update the following as required: SOPs and RMF and other certification and accreditation documentation associated with the development and implementation of new and existing AGC information systems on the AGC network. Documentation shall be developed in accordance with NDW/NSAW policies and standards and submitted for review and approval by the COR.

5.16.14. The Contractor shall require their personnel to adhere to the required PKI policies stated herein when transmitting Controlled Unclassified Information (CUI). PKI encryption is the chosen compliant DoD standard for protecting CUI during transmission. CUI encompasses For Official Use ONLY (FOUO) and Sensitive Information. Failure to encrypt CUI during electronic transmission is considered a security weakness and must be reported to the COR for further notification to the NDW/NSAW N6 and the NDW Security Manager via the Contractor's responsible individual.

5.16.15. The Contractor shall use DoD PKI digital certificates to use as authenticators for accessing all DoD web sites and/or e-rooms and collaboration tools.

5.16.16. The Contractor shall use encryption via DoD PKI digital certificates on all e-mail messages containing CUI, and sensitive information, including but not limited to: For Official Use Only (FOUO) content, Privacy data, Contract Information, Unclassified Technical Data, Accountability information, DoD Sensitive But Unclassified (SBU), and e-mail that discusses any matter that may serve as an OPSEC indicator, per DoDI 8520.2. The Contractor shall use PKI when interacting with DoD PKI enabled information systems; and accessing DoD sensitive information.

6. TRAINING

6.1.1. The Contractor shall provide all training and user instruction pertaining to systems and functions developed, maintained and/or documented by the Contractor or any other applicable AGC systems.

6.1.2. All training and certifications required will be at the Contractor's expense.

6.1.3. Training requirements include Continuing Education Units (CEUs) to maintain current Information Assurance Technical (IAT) Level II certifications.

6.1.4. The Contractor personnel assigned to the AGC shall participate in and complete the training requirements as directed by NSAW/NDW for all Government and Contractor personnel. This may include, but not be limited to Privacy and Personally Identifiable Information (PII) Awareness Training, Active Shooter Training, Commander Navy Installations Command (CNIC) Suicide Prevention Training, DoD Cyber Awareness Challenge, CNIC Ready Navy Emergency Preparedness and CNIC Annual Security Refresher Brief.

6.1.5. Report completion of training to the COR.

7. REQUIRED STANDARD OF WORKMANSHIP

7.1. Unless otherwise specifically provided in this contract, the quality of all services rendered hereunder shall conform to the highest standards in the relevant profession, trade or field of endeavor. All services shall be rendered by or supervised directly by individuals fully qualified in the relevant profession, trade or field, and have any necessary licenses required by law. For each Contractor who will work at site, provide current resume and references of work performance at least 10 business days prior to start of work schedule.

8. CONFIDENTIALITY: NON-DISCLOSURE

8.1. The events and event discussions, lectures, presentations, materials, results, conclusions, and recommendations obtained thereof should be considered confidential in nature and treated with the same level of care that the Contractor treats its own confidential business information. The information shall not be disclosed, copied, modified, used or otherwise disseminated to any other person or entity at any time to include, but not limited to inclusion in any database external to the Government without the Government's express consent.

8.2. Some events may require contractors to sign non-disclosure agreements.

8.3. In the course of performing under this order, the Contractor may have access to Privacy Information. The Contractor shall adhere to The Privacy Act of 1974 (5 USC 552a) and applicable agency rules and regulations for the handling and safeguarding of privacy information.

9. PERIOD OF PERFORMANCE

9.1. The period of performance for this task order will have a twelve-month base year, four one-year option periods, and a FAR Clause 52.217-8 extension for up to six (6) months.

10. TRAVEL

10.1. Minimum travel may be required. Any required travel shall be at the expense of the Contractor.

11. QUALITY CONTROL PLAN (QCP)

11.1. Within ten days after contract award, the Contractor shall submit a comprehensive QCP to the COR for Government review and approval. The QCP shall fully cover all aspects of the contractor's QC Program, with the overall goal of insuring top quality services, and full compliance with all SOW requirements and performance standards.

11.2. Within seven days after receipt of the Contractor's QCP, the Government shall review, comment, approve, and/or disapprove the Contractor provided QCP.

11.2.1. The Contractor shall correct deficiencies (if any) within five days after Government notification by the COR. This review and correction process will continue until the QCP is approved in writing by the COR.

11.2.2. The Government reserves the right to require changes to the QCP, if and as necessary throughout the contract period. The Contractor shall submit changes within 30 days of notification by the COR. These revisions shall be subject to the same review and approval process as the original QCP.

12. PERSONNEL QUALIFICATIONS:

12.1. The Contractor shall be responsible for employing fully qualified and fully experienced personnel to perform the work specified in this PWS. The Contractor shall maintain the personnel, organization, and administrative control necessary to ensure that the work delivered meets the PWS specifications and requirements. The work history of each Contractor employee shall contain experience directly related to the task and functions he/she is intended to perform under the PWS.

12.2. The Contractor shall have the appropriate Defense Security Service-approved Facility at the SECRET level, participate in required security and cyber security training requirements to include counter intelligence training, and adhere to all security requirements. Questions related to security guidance for the Defense Security Service-approved Facility can be directed to the Naval District Washington Security Manager Office.

12.3. Unless otherwise indicated, all personnel shall have a current Defense Security Service issued SECRET clearance with a current single scope background investigation, which must be maintained during the performance of this contract.

12.4. All Contractor employees at the Government site working under this contract must have a SECRET clearance prior to being placed on this task. All Contractors must practice routine security procedures within DoD/DoN guidance.

12.5. Contractor shall conform to the provisions of OPNAVINST 5510.1 (series) and Department of the Navy Information and Personnel Security Program regulations. DD Form 254 will be provided at the time of award.

12.6. Personnel security requirements are further clarified in Attachment C.

12.7. The contract shall be fully staffed.

12.8. Contractor employees at the Government site working under this contract shall:

12.9. Be U.S. citizens and must have a SECRET clearance prior to being placed on this task.

12.10. Be familiar with Navy programs, codes and activities and have knowledge of military ranks and protocols. It is imperative that the on-site contractors have the interpersonal skills required for interacting with clientele of all ranks.

12.11. Contractor assigned onsite support staff must have experience with Government and Contractor personnel for event support.

12.12. Contractor Support Workforce

12.12.1. Principle Engineer/Analyst: Advanced degree in relevant field and 8+ years of relevant experience or bachelor's degree in relevant field and 15+ years relevant experience. Experienced and capable to plan and manage information technical projects and operations; workforce management; and oversight and management of contract performance and deliverables. The Principal Engineer shall also function as the Project Manager (PM) and shall act with full authority on behalf of the Contractor on all contract matters relating to daily operation of services being provided under this contract. The PM shall have experience with and be knowledgeable in all aspects of the PWS. The PM shall perform other PWS duties and tasks in addition to his/her management duties and responsibilities.

12.12.2. Senior Engineer/Analyst: Advanced degree in relevant field and 4+ years of relevant experience or bachelor's degree in relevant field and 15+ years relevant experience or, by exception and with approval, appropriate technical certificate/credentials with 20+ years relevant experience. Experienced and capable to function as technical lead and subject matter expert for systems engineering, information technology, and technical documentation. Function as operational lead on Information Technical projects and operations; workforce management; and oversight and management of contract performance and deliverables.

12.12.3. Engineer/Analyst: Bachelor's degree in relevant field and 5+ years relevant experience or, by exception and with approval, appropriate technical certificate/credentials with 10+ years relevant experience. With minimal guidance and oversight from a Principle Engineer/Analyst or Senior Engineer/Analyst, capable to design technical solutions and trouble shoot technical problems. Also capable to develop and maintain technical documentation.

12.13. In addition to the other qualifications above,

12.13.1. The Contractor must have a minimum of two (2) assigned on-site support staff network administrators that have and maintain current Information Assurance Technical (IAT) Level II certifications to include CompTIA Security Plus. The Contractor shall comply with requirements of DoD 8570.01 hereby incorporated by reference.

12.13.1.1 LAN administrators must have a degree in the information technology field, completed required training and extensive years of experience in the area. The primary LAN administrator must have at least 15 (fifteen) years of experience and the secondary LAN administrator at least 10 (ten) years of experience. IAT Level II certifications are required for granting network administrator privileged access and permissions for the LAN infrastructure.

12.13.1.2 LAN administrators must maintain IAT Level II certification, meet the required annual Continuing Education Units (CEUs) hours of training and report proof of completion to maintain ongoing privileged access.

12.13.1.3 LAN administrators must have the qualifications and skill sets to carry out the contract specified criteria. These tasks include but are not limited to the following:

12.13.3.4. Ongoing tasks will include maintaining, repairing, and upgrading/refreshing IT/AV systems and diagnosing and fixing problems or potential problems with the network and its hardware, software and systems listed in Attachment B and any subsequent changes.

12.13.3.5. Coordinating with the COR for all configuration changes to the AV network, all systems, including Windows systems, Cisco switches and other network devices operating in the environment as required.

12.14.3. Additional qualifications are:

12.14.3.1 A minimum of one Contractor employee within these categories shall maintain a current certification as an American National Standards Institute (ANSI) accredited Certified Technology Specialist (CTS) with at least 15 (fifteen) years of associated experience.

12.14.3.2 A minimum of one Contractor employee shall have a minimum combined 15 (fifteen) years of experience in the architectural, plumbing, electrical, mechanical and structural design-build field.

12.14.3.3. A minimum of one Contractor employee within these categories shall have a minimum of five (5) years of experience in the HVAC industry. This can be in the engineering design field, sales or field installation/repair services.

12.14.3.4. A minimum of two (2) Contractor employees within these categories shall maintain a current Audinate Dante certification and Biamp Tesiraforte certification.

12.15. The Contractor assigned onsite support staff must have in-depth knowledge, skill sets and experience to perform the tasks, responsibilities and requirements as detailed below for the hardware equipment, software and systems to include but not limited to those listed in Attachment B and any subsequent changes.

12.15.1. IT/AV LAN services

12.15.2. AV and LAN systems integration,

12.15.3. Network administration, policies and implementation

12.15.4. Audio, video and AV/IT capabilities

12.15.5. Maintenance and troubleshooting/repair

12.15.6. Design, specification, installation set-up and configuration

12.15.7. Upgrade/refresh hardware equipment, software and systems

12.15.8. Configuration management and track/report

12.15.9. Systems to include Dante Audio Network, Crestron control systems, Cisco switches (multicasting), AMX switching and control, audio amplification, configuration, Biamp audio switching and control, Shure microphones, and the audio video infrastructure.

12.15.10. Initiate, update, sustain and renew RMF through the continuous monitoring and accreditation cycle

12.15.11. Risk Management Framework (RMF) processes for attaining/maintaining an Authority to Operate (ATO) accreditation for compliance and in accordance with DoN, DoD and federal policies.

12.15.12. Information System Security Engineer (ISSE) responsibilities for the RMF continuous monitoring processes and ongoing compliance with security requirements

12.15.13. System documentation

12.15.14. Enterprise Mission Assurance Support Service (eMASS)

- 12.15.15. Policies and implementation,
- 12.15.16. Artifacts
- 12.15.17. Diagrams and Schematics
- 12.15.18. Information Vulnerability Management
- 12.15.19. Security Compliance
- 12.15.20. Cyber Security Management
- 12.15. 21. Vulnerability Scanning
- 12.15.22. Validation and Control Assessment
- 12.15.23. Malware Protection - Definitions and Updates
- 12.15.24. Configuration Management
- 12.15.25. Document Review
- 12.15.26. IT Asset Management
- 12.15.27. Continuous Improvement
- 12.15.28. Risk Management
- 12.15.29. Plan of Actions and Milestones (POAMs)
- 12.15. 30. Software and Firmware Updates
- 12.15.31. Security Technical Implementation Guides (STIGS)
- 12.15.32. Security Reference Guides (SRGs)
- 12.15.33. Information Assurance Vulnerability Alerts (IAVAs)
- 12.15.34. Security Content Automation Protocol (SCAP)
- 12.15. 35. Assured Compliance Assessment Solution (ACAS) Scans
- 12.15.36. Secure Host Base (SHB) and HBSS/malware functions

12.16. Cyber Work Force. The Contractor shall examine all positions and define its cyber workforce requiring cyber certification based on the requirements defined in DoD/DoN instructions to include DoDD 8140, DODD 8570.01 and DoD 8570.01M, with approval by the Government. All identified personnel identified by the Contractor and approved by the Government are part of the cybersecurity work force and are required to be certified with criteria established in DoDD 8570.01 and DoD 8570.01-M.

12.17. Key Personnel Replacement and Substitution

12.17.1. The personnel characteristics identified in this PWS are considered key to the successful performance of this PWS. The tasks described in this PWS require specialized skills and diplomacy due to the nature of the tasks.

12.17.2. The Contractor shall provide a qualified substitute in event the Contractor cannot meet any obligation or portion required services due to illnesses and/or absences for any other reason. A 'qualified substitute' is defined as an individual who meets the qualifications outlined in this PWS. All substitute employees shall meet the approval of the COR. Provide resumes of back up personnel, who might have to replace original Contractors while they are out of the office.

12.17.3. The Contractor shall not substitute personnel assigned to perform work under this PWS without the prior approval of the COR. Requests for approval of substitutions shall be in writing and shall provide a detailed explanation of the circumstances necessitating the proposed substitutions. The request shall contain a complete resume for the proposed substitute, and any other information requested or needed by the COR that are equal to or higher than the key personnel to be augmented. The Contracting Officer or his/her authorized representative shall evaluate such requests and promptly notify the Contractor in writing whether the proposed substitution is acceptable.

12.17.4. The Contractor shall provide qualified replacements for staff that depart, are on leave, etc. Replacements should be seamless; ensuring adequate turn over time between employees departing to ensure there is no change in level of quality. If no replacement is available from the Contractor; then the Contractor, at his/her expense, is required to hire a temporary professional, with the required qualifications of this Contractor to substitute for NOT MORE THAN 30 calendar days till a permanent Contractor employee can be hired.

13. SPECIAL REQUIREMENTS/INSTRUCTIONS/CONSIDERATIONS

13.1. No data provided to, or developed by, the Contractor shall be used for any purpose other than this PWS. All information (data files and hard copy) becomes the property of the Government and the Contractor shall return them to the AGC upon the completion of the task.

13.2. The Government shall provide equipment (i.e., computers, furniture) to the Contractor during the performance of the requested services. All such items will remain the property of the Government.

ATTACHMENT A

1. AGC Facility and Conference Components

1.1. The AGC facility is comprised of the following components:

1.1.1. The Collaboratory Event Room has a total configurable workspace of 4,100 square feet, over 100 recessed floor boxes with local area network (LAN) and AV ports, video screen displays over 8 feet wide, large light emitting diode (LED) flat panel displays, broadcast quality ceiling mounted video cameras, custom lecterns, wireless lapel/handheld/tabletop microphones, VTC cameras, ceiling recessed audio speaker system with below floor low frequency audio drivers, presenter timer clock, up to 270 wireless voting devices, extensive control/operations with audio video control system, rolling and/or floor standing LED/LCD displays, mobile professional grade Digital Video (DV) video camera with direct streaming to local hard drive, wireless Navy/Marine Corps Intranet (NMCI) workstations and hard wired computing support workstations. The event room has the capacity for configurable workspace using combinations of rectangular, half-rectangular and round tables as well as two types of chairs. Its capacity for configurable workspace in auditorium style seating can accommodate up to approximately 275 attendees. It can also be configured into three separate rooms through the use of movable, locking and sound attenuating wall panels.

1.1.2. The Strategic Planning Room is a configurable workspace of 1,580 square feet with video screen displays over 8 feet wide served by an advanced video processing unit implementing edge blending, over 30 recessed floor boxes with LAN and AV ports, VTC cameras, broadcast quality ceiling mounted video cameras, rolling plasma display, ceiling mounted microphones, ceiling mounted recessed audio speakers, presenter timer clock, up to 60 wireless voting devices, audio video control system, wireless NMCI workstations and hard wired computing support workstations. The event room has the capacity for configurable workspace using combinations of rectangular, half-rectangular and round tables as well as two types of chairs to accommodate a variety of functions. When set up auditorium style seating, the room can accommodate up to approximately 60 attendees.

1.1.3. The Training Room is a configurable workspace of 425 square feet with video screen displays, an audio video control system panel, VTC cameras, and four recessed floor boxes with LAN and AV ports, wireless NMCI workstations. The room has the capacity for configurable workspace using half-rectangular tables and two types of chairs to accommodate a variety of functions. When set up, the room can accommodate up to approximately 25 attendees.

1.1.4. The Guest Services Room is a transient business center style work area provided for event attendees to have access to NMCI computer workstations (including email/internet access), NDW telephones (NDW telephone has Defense Switched Network (DSN) capabilities), and multifunctional copy/fax/print machine. The nominal maximum capacity is ten.

1.1.5. The Flag Room is centrally located within the AGC and includes a central conference table, a video screen display, an audio video control system panel, ceiling recessed speakers and recessed floor boxes with LAN and AV ports. The room can also flex as a breakout room or an overflow area for event attendees assigned to other rooms.

1.1.6. The Very Important Person (VIP) Suite is located immediately off of the entrance of the Collaboratory Event Room and consists of a wall mounted flat panel display with switching between event content and local room content, an audio video control system panel, VTC cameras, a recessed power/LAN/AV/telephony floor box and ceiling recessed speakers. The nominal maximum capacity is six.

1.1.7. The Planning Room is located within the Event Support Administrative Area and includes a central conference table, wall mounted flat panel display with switching between event content and local room content, an audio video control system panel, VTC cameras, a personal computer (PC) workstation and a wireless audience response (voting) system for demonstrating that capacity to clients during tours and/or event planning meetings.

1.1.8. The Event Support/Administrative Area includes workstations for nominal six personnel, has a flat screen panel display that can relay event AV content into the space as needed and an audio video control system panel.

1.1.9. The Technical Support Area has workstations for nominal three personnel, has wall mounted flat panel display, audio video control system panel, video production station, patching wall integrated into the recessed floor box system throughout the event rooms for data/AV/telephone reconfiguration, lighting control touch panel, audio/video/LAN infrastructure devices and equipment.

1.1.10. The lobby entrance area on the first floor has a registration desk and an electronic LED display that can relay key information. It also has restrooms.

1.1.11. The foyer is located on the second floor and is a balcony overlooking the registration desk. This transition area provides space for caterers or clients to set up light refreshments for event attendees and seating. It also has wall mounted flat panel displays to welcome event attendees.

1.1.12. The kitchen area is for staff use as well as a catering area and provides the client a light refreshment preparation area. It includes a refrigerator, sink, microwave, water filtration unit and counter space.

1.1.13. The electrical closet includes the fire alarm and sprinkler system monitoring system and electrical panels for outlets and lighting.

1.1.14. The storage areas include the janitor closet, an electrical data vault and storage space behind the event rooms.

1.1.15. The core technical equipment areas are adjacent to the Technical Support, Collaboratory and Strategic Services rooms. The entire AGC uses a two-foot raised deck system for below floor cabling and power distribution.

1.1.16. The mechanical and electrical room on the second floor has a portion of the Heating Ventilation and Air Conditioning (HVAC) controls equipment, the power for the client computer stations and the heating/cooling units for all the technology equipment.

1.1.17. The roof area has the chiller units, fresh air intake, smoke evacuation fan, and satellite dishes for the AGC.

1.1.19. The mechanical rooms on the third and fourth floors contain the heating/cooling equipment that accommodates the AGC to include the lobby and the foyer.

ATTACHMENT B

1. Local Area Network (LAN)

1.1 LAN Overview

1.1.2 Audio Visual Network

1.1.3 AV network workstations

1.1.4. Audio visual control systems

1.1.5 Dante Audio Network

1.1.6. Integrated audio, video and telephone devices

1.1.7 Video Conferencing such as MS Teams applications

1.1.8. LAN software and hardware

1.1.9. ACAS scanning/remediation

1.1.10. Network switches (Fiber and Ethernet) for audio video and data using multicast

1.1.11. Video wall control and processing

1.1.12. Touch panel control system

1.1.13. Host Based Security Systems (HBSS)

1.1.14. Computer controlled lighting systems

1.1.15. Amplified voice and program distribution

1.1.16. Wired and wireless microphone systems

1.1.17. Integrated patching wall and floor box system

1.2. LAN Hardware.

1.2.1. Bosch: networked digital video recording system

1.2.2. AMX: digital transceivers for Dante network audio, audio/video encoders and decoders, and digital controllers for audio/video distribution

1.2.3. Biamp: digital audio networking cards and audio amplifiers

1.2.4. Cambridge Sound: sound masking

1.2.5. Cisco: managed layer 2 network switches using multicast PoE

1.2.6. Crestron: control system units, system processors, touch screens and digital graphics engines

1.2.7. Dell: laptops

1.2.8. Lab: audio amplifiers

1.2.9. Lenovo: audio visual network control workstations

1.2.10. Microchip: Network Time Protocol server

1.2.11. Shure: audio Dante network interface units, networked based microphone arrays and analog audio interface

devices

1.2.12. Vaddio: network based video cameras and interface bridges

1.3. LAN Software

1.3.1. Acronis: Acronis backup software

1.3. 2. Adobe: Adobe Photoshop, Adobe Illustrator and Adobe Acrobat

1.3.3. AMX: N-Able for AV device management

1.3.4. Audinate: Dante Controller, Discovery and Updater

1.3.5. Biamp: Tesira Audio System Design and Biamp Canvas GUI control

1.3.6. Broadcom: VMware

1.3.7. Crestron: Crestron Toolbox for GUI control device management, Crestron Devise Database

1.3.8. DataPath: WallControl 10 Pro for video wall management

1.3.9. DISA/NIST: CAP, STIG Viewer Tool and Secure Host Baseline (SHB) for Windows 10 or later editions

1.3.10. IBM: Red Hat Linux

1.3.11. Intel: Intel Network Connections, Engine Component and RST

1.3.12. Linux: Linux Operating Systems

1.3.13. McAfee: McAfee VirusScan Enterprise

1.3.14. Microsoft: Windows 10 and 11 operating systems and subsequent versions, Windows 10/11 Enterprise LTSC 2021/2024 and subsequent versions, Microsoft Office, Microsoft Edge, Maker, Microsoft Defender, Microsoft Visio, Microsoft Movie Maker, Microsoft Project and Access

1.3.15. Nmap Project: Npcap Windows packet capture

1.3.16. Planar System: VCS Control V6 Client, Server and Monitor

1.3.17. Shure: Shure Device Discovery

1.3.18. Symantec: Endpoint Encryption

1.3.19. Tenable: ACAS Nessus and Security Center

1.3.20. VideoLAN: VLC desktop media player

1.3.21. Wireshark: Wireshark network analyzer

1.3.22. eMasster

1.3.23. Putty remote SSH client

1.3.24. Active Card Gold CAC PKI

2. Wide Area Network (WAN) Overview

2.1. NMCI workstations, printers and enterprise wireless

2.2. Facility security access control system

2.3. HVAC energy management and Digital Direct Control system

2.4. Navy Go WiFi

3. Infrastructure

3.1. Recessed floor box distribution and patching wall system with capability for distributing power, LAN, KVM, video, balanced audio and telephone.

3.2. Lecterns each incorporating gooseneck microphone, microphone inline digital signal processor, microphone output limiter, microphone pre-amplifier, presenter monitor, workstation/keyboard/mouse, 120 volt duplex electrical outlet, VGA video feed/drop, 3/5mm stereo audio drop, NMCI LAN drop.

3.3. Wired and wireless presenter/audience timer clock systems

3.4. Multi-zone security monitoring, alarm and access control badge system consisting of workstation, software and installed sensors/switches/door latches. Facility access badge creation equipment including pedestal camera with integrated LED lighting, proximity badges and badge printer.

3.5. Audio video control systems for lighting, video and audio. Control is possible from multiple locations and systems allow associated switching assignments to be modified in near real time as required for events.

3.6. Cabling and equipment labeling system units with associated cartridges

3.7. CD/DVD duplicating and label printing units

3.8. Uninterruptable Power Supplies

3.9. Power Distribution Units

3.10. Portable hard drives

3.11. External CD/DVD/Blu-ray readers and burners

3.12. Shredder, Laminating and Cable labeling machines

4. Telephone

4.1. Polycom conferencing telephones including powered subwoofers and extension microphones

4.2. Cell phone signal booster system (frequency tuned receiving antennas, cabling and broad spectrum interior signal distribution antennas)

4.3. ISDN telephone system with desktop phones

4.4. Analog telephone patching system including RJ and 1/4" spec jacks integrated into the recessed floor box distribution system

4.5. Delineation block and punch down blocks

5. Video

5.1. LED flat panel displays - wall mounted, ceiling suspended, on rolling stands and with pedestal stands form 40 to 98-inch diagonal

5.2. Video over network cabling transmitter and receiver sets

5.3. Satellite receivers integrated into the AV system with associated roof mounted satellite dishes and cable system

5.4. Remote video camera control units with position, zoom and focus

5.5. Oppo BDP-95 Blu-ray player with professional balanced audio outputs

5.6. DVI-D over fiber runs

5.7. LED Direct View video walls

5.8. Bulkhead 15 pin connections in recessed floor boxes

6. Audio

6.1. Wired and wireless lapel, handheld and tabletop microphone systems with rechargeable battery system and LAN monitoring/control

6.2. Wired tabletop gooseneck microphone system consisting of rolling rack, nested Rane microphone auto-mixers, XLR patching bulkheads, XLR patching cables from 3 to 30 feet and Shure microphones

6.3. USB speaker and microphone conferencing units

6.4. 6-channel audio amplifiers model MA6S with bridging capability

6.5. Self powered studio speakers

6.6. Active impedance balancing audio transformers

6.7. Listen Technologies assisted listening system with ear-speaker, wireless transmitter and receiver integrated into the audio system

6.8. Sabine Phantom Mic Rider powered Digital Signal Processor (DSP) units.

6.9. Above ceiling and below floor low frequency audio driver system

6.10. Bulkhead XLR balanced audio connectors in recessed floor boxes

6.11. Voice optimized, linear array speakers

7. Video Production

7.1. DV, DVD, VCD, VCR units

7.2. DV professional video camera with associated lens, boom-pole telescopic microphone, color monitor, floating head, and rolling tripod and handheld video camera with HDD digital internal storage and peripheral automated DVD production/burning

7.4. Firestore DV HD storage devices

7.5. Professional CD/DVD duplicating and printing hardware

7.6. Sennheiser transmitter and receiver sets to provide wireless lapel and/or handheld microphones for use with the video camera

7.7. Manual audio mixer for interfacing both wireless and wired microphones into the video cameras

7.8. SLR camera, zoom and wide-angle lenses

ATTACHMENT C

1. Contractor Personnel Security Requirements

1.1. All personnel performing on this contract will be U.S. citizens. Commander Navy Installations Command (CNIC) requires all Contractor personnel working on the Federally-controlled facility to have, at a minimum, an initiated National Agency Check with Written Inquiries (NACI=T1) or NACI equivalent and favorable completion of a Federal Bureau of Investigation (FBI) fingerprint check., workstations and printers

1.2. In accordance with Department of Defense (DoD) Regulation 5200.2-R, Personnel Security Programs, all DoD Contractor personnel who have access to Federally-controlled information systems must be assigned to positions which are designated at one of three information technology (IT) levels, each requiring a certain level of investigation and clearance, as follows:

1.2.1. Critical Sensitive=IT-I for an IT position requiring a single scope background investigation (SSBI=T5) or SSBI equivalent. This designation encompasses privileged user accounts for networks and systems encompassed under this PWS, often referred to as "administrator" or "sys admin" accounts;

1.2.2. Non-Critical Sensitive =IT-II for an IT position requiring a National Agency check with Law and Credit (NACLC=T3) or NACLC equivalent; and 1.2.3. Non Sensitive=IT-III for an IT position requiring a T1 or equivalent.

1.2.4. Note: ALNAV 005/16 implemented the tiered investigation system renaming NACI to T1, NACLC to T3, and SSBI to T5.

1.3. Previously completed security investigations may be accepted by the Government in lieu of new investigations if determined by the NDW Personnel Security Office to be essentially equivalent in scope to the contract requirements. The length of time elapsed since the previous investigation will also be considered in determining whether a new investigation is warranted, as outlined in SECNAV M-5510.30, Exhibit 5A. To assist the Government in making this determination, the Contractor must provide a visit request in the Defense Information System for Security (DISS) to the respective NDW Personnel Security Office and Contracting Officer's Representative (COR) immediately upon receipt of the contract.

1.4. The COR will ensure that the Contractor is notified as soon as a determination is made by the assigned or cognizant NDW Personnel Security Office regarding acceptance of the previous investigation and clearance level.

1.4.1. If a new investigation is deemed necessary, the Contractor and COR will be notified by the respective NDW Personnel Security Office after appropriate checks in DoD databases have been made.

1.4.2. If the Contractor employee requires access to classified information and currently does not have the appropriate clearance level and/or an active security clearance, the Personnel Security Office will relay this information to the Contractor and COR for further action. Investigations for Contractor employees requiring access to classified information must be initiated by the Contractor Facility Security Officer (FSO).

1.4.3. It is the Contractor's responsibility to ensure that adequate information is provided and that each Contractor employee completes the appropriate paperwork, as required either by the COR or the Personnel Security Office, in order to begin the investigation process for the required clearance level.

1.5. The Contractor is responsible for ensuring that each Contractor employee assigned to the position has the appropriate security clearance level.

1.6. The Contractor shall submit each request for IT access through a DISS visit request.

1.7. It is the sole responsibility of the Contractor to obtain the appropriate clearance for their contractors. Upon completion of the T1, T3, T5, or other sufficient, appropriate investigation, the results of the investigation will be forwarded by OPM to the appropriate adjudication facility for eligibility determination or the NDW Personnel Security Office for review and determination regarding the applicant's suitability to occupy an unescorted entry position in performance of the contract. Contractor personnel shall not commence work on this effort until the investigation has been favorably adjudicated or the Contractor employee has been waived into the position pending completion of adjudication. The Personnel Security Office will ensure that results of investigations will be sent by OPM to the Department of Defense, Consolidated Adjudications Facility (DoD CAF) or Personnel Security Office.

1.8. A waiver for IT level positions to allow assignment of an individual Contractor employee to commence work prior to completion of the investigation may be granted in emergency situations when it is determined that a delay would be harmful to national security. A request for waiver

will be considered only after the Government is in receipt of the individual Contractor employee's completed forms, the background investigation has been initiated and favorable FBI fingerprint check has been conducted. The request for a waiver must be approved at the Flag/SES level. The cognizant Personnel Security Office reserves the right to determine whether a waiver request will be forwarded for processing. The individual Contractor employee for which the waiver is being requested may not be assigned to a position or physically work at the Federally-controlled facility and/or be granted access to Federally controlled information systems, until the waiver has been approved.

1.9. The requirements of this clause apply to the prime Contractor and any subcontractors the prime Contractor may employ during the course of this contract, as well as any temporary employees that may be hired by the Contractor. The Government retains the right to request removal of Contractor personnel, regardless of prior clearance or adjudication status whose actions, while assigned to this contract, who are determined by the contracting officer to conflict with the interests of the Government. If such removal occurs, the Contractor shall assign qualified personnel, with the required investigation, to any vacancy.

1.10. All Contractor personnel who are granted access to Government and/or Federally-controlled information systems shall observe all local automated information system (AIS) security policies and procedures. Violations of local AIS security policy, such as password sharing, performing personal work, file access violations, or browsing files outside the scope of the contract, will result in removal of the Contractor employee from Government property and referral to the Contractor for appropriate disciplinary action. Actions taken by the Contractor in response to a violation will be evaluated and will be reflected in the Contractor's performance assessment for use in making future source selection decisions. In addition, based on the nature and extent of any violations of AIS security policy, the Government will consider whether it needs to pursue any other actions under the contract such as a possible termination.

1.11. The Contractor will be required to obtain a Common Access Card (CAC) or Installation Access Badge for each Contractor employee in accordance with procedures established by CNIC. When a CAC is required, the Contracting Officer will ensure that the Contractor follows the requirements of Homeland Security Presidential Directive 12 and any other CAC-related requirements in the contract. The Contractor shall provide, on a monthly basis, a listing of all personnel working under the contract that have CACs.

1.12. Contractor personnel must additionally receive operations security (OPSEC) and information security (INFOSEC) awareness training. The CNIC annual OPSEC refresher training and CNIC annual INFOSEC training will satisfy these requirements and are available through the NDW Security Office.

1.13. When a Contractor employee who has been granted a clearance is removed from the contract, the Contractor shall provide an appropriately trained substitute who has met or will meet the investigative requirements of this clause. The substitute may not begin work on the contract without written documentation, signed by the Contracting Officer, stating that the new Contractor employee has met one of the criteria set forth in paragraphs (c), (d), or (i) of this clause, (i.e., acceptance of a previously completed security investigation, satisfactory completion of a new investigation, or a waiver allowing work to begin pending completion of an investigation). Contractor individual employees removed from this contract as a result of a violation of local AIS security policy are removed for the duration of the contract.

1.14. The following shall be completed for every employee of the Government Contractor working on this contract upon contract expiration. Additionally, the Contractor shall notify the contracting officer and COR immediately in writing whenever a Contractor employee working on this contract resigns, is reassigned, is terminated or no longer requires admittance to the Federally-controlled facility or access to Federally-controlled information systems. When the Contractor employee departs, the Contractor will relay departure information in a written statement to the cognizant COR, contracting officer, and Personnel Security Office and the Trusted Agent (TA) that entered the individual into the Trusted Associated Sponsorship System (TASS), so appropriate databases can be updated. The Contractor will ensure each departed employee has completed the CNIC C3P Ashore Out-Processing Checklist, when applicable, for the necessary security briefing, has returned any Government-furnished equipment, returned the DoD CAC and any location-specific badge, returned any DoD or DON vehicle decal, and requested deletion of local area network account with a prepared Department of Defense (DD) Form 2875. The Contractor will be responsible for any costs involved for failure to complete the out-processing, including recovery of Government property and investigation involved.

1.15. These Contractor security requirements do not excuse the Contractor from meeting the delivery schedule/performance requirements set forth in the contract, or waive the delivery schedule/performance requirements in any way. The Contractor shall meet the required delivery schedule /performance requirements unless the contracting officer grants a waiver or extension.

1.16. The Contractor shall not bill for personnel who are not working on the contract while that Contractor employee's clearance investigation is pending.

Requirements

Admiral Gooding Center Technical and Event Administration Support Services in support of Naval Support Activity Washington (NSAW).

Continuation of Packaging and Marking

All deliverables shall be packaged and marked IAW Best Commercial Practices.

Continuation of Inspection and Acceptance

QUALITY ASSURANCE SURVEILLANCE PLAN FOR EVENT AND INFORMATION TECHNOLOGY SUPPORT SERVICES IN SUPPORT OF NAVAL SUPPORT ACTIVITY WASHINGTON (NSAW)

1. INTRODUCTION

1.1 Purpose. The Quality Assurance Surveillance Plan (QASP) is designed to assist the Government in monitoring the quality and quantity of services performed by the contractor. The plan complies with the requirements of the Performance Work Statement (PWS). The QASP consists of the following parts:

1.1.1 Quality Assurance Requirements - contains an overview and general description of the elements relating to the quantity and quality of the services required by the PWS. It references functional and performance requirements for all areas of the contract.

1.1.2 Quality Assurance Methods - provides an assessment of the risks and benefits associated with choosing a particular surveillance method for a given performance requirement. It also identifies any critical logistics, protocol, mission sensitive or similar considerations that, if not dealt with appropriately, may adversely impact the successful performance of PWS requirements. The Contracting Officer (KO) will use information from this section to decide on the level of quality assurance (QA) resources which can be supported and the amount of risk which can be assumed.

1.1.3 Contract Administration Organization - provides guidance on appropriate staffing for the contract administration team.

1.1.4 Quality Assurance Surveillance Schedule - guides the Contracting Officer's Representative (COR) through scheduling and documenting the performance of the Contractor that is performing the work described in the PWS.

1.1.5 Sampling Plans, provide systematic methodologies to be used by the COR(s) in evaluating the performance of PWS requirements.

2. OVERVIEW

2.1. Development. This QASP has been developed to provide the CORs an effective and systematic surveillance method for the functions described in the PWS.

2.2. Methodology. This QASP provides a systematic method to evaluate the services the Contractor is required to furnish, e.g., quality, quantity, timeliness, etc., and not the details of how the Contractor accomplishes the work. This QASP identifies the various surveillance methods that assure the Government of satisfactory Contractor performance.

2.3. Contractor Responsibility. This QASP is based on the premise that the Contractor, and not the Government, is responsible for management and Quality Control (QC) actions to meet the terms of the contract. The performance requirements and measures outlined in the PWS recognize Contractor performance will not be perfect, and unforeseen and uncontrollable problems do occur. However, good management and the use of an adequate QC plan will allow the Contractor to operate within specified performance requirements.

2.3.1. The Contractor is the owner of the QC process and will institute changes as necessary to ensure the desired outcomes specified in the PWS are met. The Contractor is responsible for developing, implementing, and modifying the quality control process.

2.4. Government Responsibility. The Government's intention is to minimize the level of the Government's involvement and level of inspections and allow the Contractor to responsibly perform to, or exceed, the PWS standards. If the Contractor's performance is not satisfactory, and it appears that the Contractor's QC process has not produced the desired result, the COR has the option to increase quality assurance surveillance in order to protect the Government's best interest.

2.5. Non-conformance. Any non-conformance with contract requirements is a "defect." The terms "defective" and "discrepancy" are used interchangeably and reference a service output that does not meet the associated standard as defined in the PWS. If any Government action or lack of action causes unacceptable performance, which results in a defect, then these defects shall not be counted against the Contractor. All costs associated with rework due to Contractor defects are the responsibility of the Contractor. The Contracting Officer can use the "Inspection of Services" (FAR 52.212-4) clause in the contract to address non-performance, defective performance and performance that does not meet the standards required by the PWS.

3. CRITICAL CONTRACT REQUIREMENTS

3.1 Qualified Personnel. The contractor must provide contractors that are qualified and prove capable of performing the tasks as cited in the PWS. No evidence of poor performance, inaccurate work performance, understaffing or unqualified support staff. (PWS Sections 2, 5, and 12)

3.2 Work Schedule. Sufficient support staff levels and work schedule flexibility to support all aspects of AGC events and information technology. (PWS Sections 4 and 5)

3.3 Maintain Continuous Operations and Ongoing Full Functionality. Contractor must maintain 100% full functionality of the AGC. Event support activities are well-coordinated for seamless operations. AV, telecommunications and IT components and services are suitably configured, sufficiently provisioned, and expertly operated to provide full functionality to AGC customers. (PWS Section 2, 3, and 5)

3.4 Events - Meetings and Conferences. All aspects of services provided by the AGC to the clients are coordinated prior to, during and after the event to include continuous support throughout the duration of their event. All IT and AV systems are operational when needed. Corrective actions are initiated immediately if systems fail. No evidence of poor performance that impacts AGC operations or its clients. (PWS Sections 5 and 4)

3.5 System Design, Network Administration and Technical Support. Comprehensive network administration requirements are met. Compliance with DoD, DoN and NDW IT and AV standards. No evidence or reports of failure to maintain and perform network administration functions (design,

specify, assist with procurement, setup, configure, back up, maintenance/repair, upgrades, connectivity, performance monitoring, technical support for the operation.) Technical documentation and event data are captured and reflect all the technical aspects of the operations. (PWS Section 5).

3.6 Hardware, Software and Systems. AGC's assets are well maintained and operated correctly. Contractor uses their in-depth knowledge and experience with LAN/WAN hardware/ software, custom applications, utility software, event hardware, telephone, audio, video, audio and video production for maintaining continuous operations. (PWS Section 5)

3.7 System Integration. Technical support for networking environment to include the planning, transitioning, deployment and installation of new software and upgrades. Compliance with DoD, DoN and NDW standards. (PWS Sections 3 and 5)

3.8 Facility Operations and Design. Monitor and make necessary adjustments for climate control. Immediate coordination with appropriate support services for building facility support related issues and tracked to completion. Safety related issues are reported immediately. Floor plans, schematics and drawings are captured. (PWS Sections 4 and 5)

3.9 Logistics. Flawless accountability of AGC assets. No reports of inaccurate inventory for supplies and equipment -- inspections, record keeping, or discrepancies noted for receipt processing, induction into the inventory, retention and disposal. (PWS Sections 3 and 5)

3.10 Documentation and Reports. Documents are created, maintained, referenced and updated. Quality reports, data calls, briefs, calendar, quotes, administrative documentation, SOPs, etc. are accurate and submitted on time. Technical documentation and event data are captured and reflect all the technical aspects of the operations. (PWS Sections 3 and 5)

3.11 Security Requirements for Classified Events. Compliance with DoD and DoN security guidance and standards and the PWS. No evidence or reports of poor record keeping i.e. record maintenance, updating, reporting and receipt of all reports/data/directives. Contractors adhere to directives. No evidence or reports of improper handling of classified material, compromise of classified information or failure to secure the room for classified events. (PWS Sections 3 and 5)

3.12 Security and Facility Security Practices. Compliance with DoD and DoN security guidance and standards and the PWS. All staff have the required security clearance. Incidents, violations, known or suspected unauthorized disclosure of information are immediately reported to the COR and NDW Security Manager. No reports of contractor violations or incidents. (PWS Sections 3, 5, and 12)

3.13 Cyber security. Compliance with DoD, DoN, CNIC and NDW cyber security program directives and standards. for cyber security/IA compliance. Maintain/attain an Authority to Operate. Comply with all facets of the Risk Management Framework continuous monitoring process and ongoing compliance with security requirements. Certification requirements are met and continuously maintained. No evidence of poor documentation for testing, monitoring, auditing or practices. Generation of documentation for AGC systems is thorough and quickly provided in accordance with the guidance. (PWS Sections 3 and 5)

3.14 Training. Contractor personnel complete training requirements on time. Training is comprehensive, complete and fully documented for all users. (PWS Section 6)

3.15 Standard of Workmanship. Taskings are accurate and completed on time in order to ensure continuous operations. (PWS Sections 3, 5, and 7)

3.16 Confidentiality: Non-disclosure. Compliance with DoD and DoN standards. No evidence of information mishandling nor of improper disclosure. (PWS Sections 5 and 8)

3.17 Quality Control Plan. Timely submission and relevant to the tasking. (PWS Section 11)

3.18 Property of the Government Requirements. Adherence to rules regarding property of the Government to include all information and data provided to or developed by the Contractor. (PWS Section 13)

3.19 Overall Contract Performance. The contractor shall comply with all aspects of the PWS and provide accurate information.

3.20 Invoices. The contractor shall submit timely and accurate invoices monthly in accordance with task order procedures.

3.21 Combating Trafficking in Persons. The contractor's implementation of the clause at FAR 52.222-50, Combating Trafficking in Persons, will be a surveillance item. Non-compliance with the trafficking in persons requirements will be brought to the immediate attention of the contracting officer (see DFARS PGI 222.1703).

4. SURVEILLANCE METHODS

4.1. Overview. This section discusses the risks and benefits of acceptable quality assurance surveillance methods.

4.2. One Hundred (100) Percent Surveillance. With this method, performance is inspected/evaluated at each service occurrence. The results of the Contractor's overall performance are then evaluated to determine acceptability of the lot.

4.3. Planned Sampling. This method, sometimes called "periodic sampling," consists of the evaluation of tasks selected on other than a 100 percent or random basis. It may be appropriate for tasks that occur infrequently, and where 100 percent inspection is neither required nor practicable. In this case, the decision of what to inspect, when to inspect, and how often to inspect is established using subjective judgment.

4.4. Random Sampling. With random sampling, services are sampled to determine if the level of performance is acceptable.

4.5. Customer Feedback. Customer feedback may be obtained either from the results of formal customer satisfaction surveys or from random customer feedback. Customer complaints, to be considered valid, must set forth clearly and in writing the detailed nature of the complaint, must be signed and must be forwarded to the Contractor. The Contractor shall maintain a summary log of all formally received customer complaints as well as a copy of each complaint in a documentation file.

4.5.1. The Contracting Officer will determine what action, in compliance with the contract, to take if the Contractor continuously receives customer complaints for the same services. The CORs should provide relevant documentation to the Contracting Officer to aid in remedial action.

4.6. Combining Methods of Surveillance. These various methods of surveillance are not mutually exclusive. Indeed, if more than one factor is pertinent to a specific function or individual task, they should be considered in the selection of the surveillance method(s).

5. INCENTIVES/DISINCENTIVES.

5.1. Annual Report. The COR makes an annual report on Contractor Performance (CPARS or other annual report). The contractor's failure to achieve satisfactory performance under the contract, reflected in the COR's annual report, may result in termination of the contract and may also result in the loss of future Government contracts. Additionally, the contractor's failure to achieve satisfactory performance under the contract may also result in the non-exercise of available options.

5.2. Contract Deficiency Report. For each item that does not meet acceptable levels, the Government may issue a Contract Discrepancy Report (CDR). CDRs will be forwarded to the Contracting Officer with a copy sent to the contractor. The contractor must reply in writing within 5 days of receipt identifying how future occurrences of the problem will be prevented. Based upon the contractor's past performance and plan to solve the problem, the Contracting Officer will determine if any further action will be taken.

6. QASP MATRIX

Performance Element	Performance Requirement	Method of Surveillance	Acceptable Quality Level	Procedures to be taken when performance standards are not met
QASP CR 3.1 Qualified Personnel	The contractor must provide contractors that are qualified and prove capable of performing the tasks as cited in the PWS. No evidence of poor performance, inaccurate work performance, understaffing or unqualified support staff. (PWS Sections 2, 5, and 12)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.2 Work Schedule	Sufficient support staff levels and work schedule flexibility to support all aspects of AGC events and information technology. (PWS Sections 4 and 5)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.3 Maintain Continuous Operations and Ongoing Full Functionality	Contractor must maintain 100% full functionality of the AGC. Event support activities are well-coordinated for seamless operations. AV, telecommunications and IT components and services are suitably configured, sufficiently provisioned, and expertly operated to provide full functionality to AGC customers. (PWS Section 2, 3, and 5)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.4 Events - Meetings and Conferences	All aspects of services provided by the AGC to the clients are coordinated prior to, during and after the event to include continuous support throughout the duration of their event. All IT and AV systems are operational when needed. Corrective actions are initiated immediately if systems fail. No evidence of poor performance that impacts AGC operations or its clients. (PWS Sections 5 and 4)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.5 System Design, Network Administration and Technical Support	Comprehensive network administration requirements are met. Compliance with DoD, DoN and NDW IT and AV standards. No evidence or reports of failure to maintain and perform network administration functions (design, specify, assist with procurement, setup, configure, back up, maintenance/repair, upgrades, connectivity, performance monitoring, technical support for the operation.) Technical documentation and event data are captured and reflect all the technical aspects of the operations. (PWS Section 5).	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.6 Hardware, Software and Systems	AGC's assets are well maintained and operated correctly. Contractor uses their in-depth knowledge and experience with LAN/WAN hardware/ software, custom applications, utility software, event hardware, telephone, audio, video, audio and video production for maintaining continuous operations. (PWS Section 5)	COR Review and Random Sampling	>99%	IAW FAR Clause 52.212-4

QASP CR 3.7 System Integration	Technical support for networking environment to include the planning, transitioning, deployment and installation of new software and upgrades. Compliance with DoD, DoN and NDW standards. (PWS Sections 3 and 5)	COR Review and Random Sampling	>99%	IAW FAR Clause 52.212-4
QASP CR 3.8 Facility Operations and Design	Monitor and make necessary adjustments for climate control. Immediate coordination with appropriate support services for building facility support related issues and tracked to completion. Safety related issues are reported immediately. Floor plans, schematics and drawings are captured. (PWS Sections 4 and 5)	COR Review and Random Sampling	>99%	IAW FAR Clause 52.212-4
QASP CR 3.9 Logistics	Flawless accountability of AGC assets. No reports of inaccurate inventory for supplies and equipment -- inspections, record keeping, or discrepancies noted for receipt processing, induction into the inventory, retention and disposal. (PWS Sections 3 and 5)	COR Review and Random Sampling	>99%	IAW FAR Clause 52.212-4
QASP CR 3.10 Documentation and Reports	Documents are created, maintained, referenced and updated. Quality reports, data calls, briefs, calendar, quotes, administrative documentation, SOPs, etc. are accurate and submitted on time. Technical documentation and event data are captured and reflect all the technical aspects of the operations. (PWS Sections 3 and 5)	COR Review and Random Sampling	>99%	IAW FAR Clause 52.212-4
QASP CR 3.11 Security Requirements for Classified Events	Compliance with DoD and DoN security guidance and standards and the PWS. No evidence or reports of poor record keeping i.e. record maintenance, updating, reporting and receipt of all reports/data/directives. Contractors adhere to directives. No evidence or reports of improper handling of classified material, compromise of classified information or failure to secure the room for classified events. (PWS Sections 3 and 5)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.12 Security and Facility Security Practices	Compliance with DoD and DoN security guidance and standards and the PWS. All staff have the required security clearance. Incidents, violations, known or suspected unauthorized disclosure of information are immediately reported to the COR and NDW Security Manager. No reports of contractor violations or incidents. (PWS Sections 3, 5, and 12)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.13 Cyber security	Compliance with DoD, DoN, CNIC and NDW cyber security program directives and standards. for cyber security/IA compliance. Maintain/attain an Authority to Operate. Comply with all facets of the Risk Management Framework continuous monitoring process and ongoing compliance with security requirements. Certification requirements are met and continuously maintained. No evidence of poor documentation for testing, monitoring, auditing or practices. Generation of documentation for AGC systems is thorough and quickly provided in accordance with the guidance. (PWS Sections 3 and 5)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.14 Training	Contractor personnel complete training requirements on time. Training is comprehensive, complete and fully documented for all users. (PWS Section 6)	COR Review and Random Sampling	>99%	IAW FAR Clause 52.212-4
QASP CR 3.15 Standard of Workmanship	Taskings are accurate and completed on time in order to ensure continuous operations. (PWS Sections 3, 5, and 7)	COR Review and Random Sampling	>99%	IAW FAR Clause 52.212-4
QASP CR 3.16 Confidentiality: Non-disclosure	Compliance with DoD and DoN standards. No evidence of information mishandling nor of improper disclosure. (PWS Sections 5 and 8)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4

QASP CR 3.17 Quality Control Plan	Timely submission and relevant to the tasking. (PWS Section 11)	COR Review and Random Sampling	>99%	IAW FAR Clause 52.212-4
QASP CR 3.18 Property of the Government Requirements	Adherence to rules regarding property of the Government to include all information and data provided to or developed by the Contractor. (PWS Section 13)	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4
QASP CR 3.19 Overall Contract Performance	The contractor shall comply with all aspects of the PWS and provide accurate information.	COR Review and Random Sampling	>98%	IAW FAR Clause 52.212-4
QASP CR 3.20 Invoices	The contractor shall submit timely and accurate invoices monthly in accordance with task order procedures.	COR Review and Random Sampling	>98%	IAW FAR Clause 52.212-4
QASP CR 3.21 Combating Trafficking in Persons	The contractor's implementation of the clause at FAR 52.222-50, Combating Trafficking in Persons, will be a surveillance item. Non-compliance with the trafficking in persons requirements will be brought to the immediate attention of the contracting officer (see DFARS PGI 222.1703).	COR Review and Random Sampling	100%	IAW FAR Clause 52.212-4

INCENTIVES/DISINCENTIVES:

The contractor's failure to achieve satisfactory performance under the contract, reflected in the COR's annual report, may result in termination of the contract and may also result in the loss of future Government contracts and/or task and delivery orders. The contractor's failure to achieve satisfactory performance under the contract and/or task or delivery orders may result in the non-exercise of available options.

For firm fixed price task or delivery orders, in accordance with the inspection of services provisions of the contract, the contractor will be incentivized to provide quality products in a timely manner since the Government can require the Contractor, at no additional cost, to replace or correct work that fails to meet contract requirements.

For each item that does not meet acceptable levels, the Government may issue a Contractor Discrepancy Report (CDR). CDRs will be forwarded to the Contracting Officer with a copy sent to the contractor. The contractor must reply in writing within 5 days of receipt identifying how future occurrences of the problem will be prevented. Based upon the contractor's past performance and plan to solve the problem, the Contracting Officer will determine if any further action will be taken.

If performance is within acceptable levels, it will be considered to be satisfactory. If not, overall performance may be considered unsatisfactory.

(End of QASP)

COMMUNICATIONS DURING THE LIFE OF THE CONTRACT (SEP 2015)

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and, notwithstanding provisions contained elsewhere in this contract, the said authority remains solely the Contracting Officer's. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Principal Contracting Officer is:

Tierra Watson
NAVSUP FLC Norfolk
1968 Gilbert Street, Suite 600, Code 233
Norfolk, VA 23511
757-443-1395

(End of Text)

APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (SEP 2015)

(a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative(s) (COR) for this contract:

To be determined at the time of award.

(b) In the absence of the COR named above, all responsibilities and functions assigned to the COR shall be the responsibility of the alternate COR acting on behalf of the COR. The Contracting Officer hereby appoints the following individual as the alternate COR:

Not applicable

(End of Text)

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES (SEP 2015)

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual/position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:

- a. All pre-award information, questions, or data;
- b. Freedom of Information inquiries;
- c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
- d. Arranging the post award conference (See FAR 42.503).

Tierra Watson
NAVSUP FLC Norfolk
1968 Gilbert Street, Suite 600, Code 233
Norfolk, VA 23511
757-443-1395

2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

Tierra Watson
NAVSUP FLC Norfolk
1968 Gilbert Street, Suite 600, Code 233
Norfolk, VA 23511
757-443-1395

3. DEFENSE CONTRACT AUDIT AGENCY (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of the contract prior to final payment to the contractor.

Not applicable

4. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

To be determined at the time of award.

5. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:

- a. Liaison with personnel at the Government installation and the contractor personnel on site;
- b. Technical advice/recommendations/clarification on the statement of work;
- c. The statement of work for delivery/task orders placed under this contract.
- d. An independent government estimate of the effort described in the definitized statement of work;
- e. Quality assurance of services performed and acceptance of the services or deliverables;
- f. Government furnished property;
- g. Security requirements on Government installation;
- h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order; and/or
- i. Certification of invoice for payment.

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

To be determined at the time of award.

In the event that the COR named above is absent due to leave, illness, or official business, all responsibilities and functions assigned to the COR will be the responsibility of the alternate COR listed below:

Not applicable

6. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:

- a. Identifying contractor deficiencies to the COR;
- b. Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
- c. Identifying contractor noncompliance of reporting requirements;
- d. Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
- e. Reviewing contractor reports providing recommendations for acceptance/rejection;
- f. Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the invoice;
- g. Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and
- h. Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Not applicable

7. ORDERING OFFICER is responsible for:

- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
- b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
- c. Obligating the funds by issuance of the delivery/task order;
- d. Authorization for use of overtime;
- e. Authorization to begin performance; and/or
- f. Monitoring of total cost of delivery/task orders issued.

The following limitations/restrictions are placed on the Ordering Officer:

- a. Type of order issued is limited by this contract to the contract type or types covered by this contract and to any limitations on the warrant of the individual placing the orders;
- b. No order shall be placed in excess of \$----- without the prior approval of the PCO; and/or
- c. No order shall be placed with delivery requirements in excess of -----.

Not applicable

(End of Text)

CONTRACT ADMINISTRATION PLAN (CAP) FOR FIXED PRICE CONTRACTSIn order to expedite the administration of this contract, the following delineation of duties is provided. The names, addresses and phone numbers for these offices or individuals are included elsewhere in the contract award document. The office or individual designated as having responsibility should be contacted for any questions, clarifications, or information regarding the administration function assigned.

1. The Procuring Contract Office (PCO) is responsible for:

- a. All pre-award duties such as solicitation, negotiation and award of contracts.
- b. Any information or questions during the pre-award stage of the procurement.
- c. Freedom of Information inquiries.
- d. Changes in contract terms and/or conditions.
- e. Post award conference.

2. The Contract Administration Office (CAO) is responsible for matters specified in the FAR 42.302 and DFARS 42.302 except those areas otherwise designated as the responsibility of the Contracting Officer's Representative (COR) or someone else herein.

3. The paying office is responsible for making payment of proper invoices after acceptance is documented.

4. The Contracting Officer's Representative (COR) is responsible for interface with the contractor and performance of duties such as those set forth below. It is emphasized that only the PCO/CAO has the authority to modify the terms of the contract. In no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the Government. If in the opinion of the contractor an effort outside the scope of the contract is requested, the contractor shall promptly notify the PCO in writing. No action may be taken by the contractor unless the PCO or CAO has issued a contractual change. The COR duties are as follows:

a. Technical Interface

(1) The COR is responsible for all Government technical interface concerning the contractor and furnishing technical instructions to the contractor. These instructions may include: technical advice/recommendations/clarifications of specific details relating to technical aspects of contract requirements; milestones to be met within the general terms of the contract or specific subtasks of the contract; or, any other interface of a technical nature necessary for the contractor to perform the work specified in the contract. The COR is the point of contact through whom the contractor can relay questions and problems of a technical nature to the PCO.

(2) The COR is prohibited from issuing any instruction which would constitute a contractual change. The COR shall not instruct the contractor how to perform. If there is any doubt whether technical instructions contemplated fall within the scope of work, contact the PCO for guidance before transmitting the instructions to the contractor.

b. Contract Surveillance

(1) The COR shall monitor the contractor's performance and progress under the contract. In performing contract surveillance duties, the COR should exercise extreme care to ensure that he/she does not cross the line of personal services. The COR must be able to distinguish between surveillance (which is proper and necessary) and supervision (which is not permitted). Surveillance becomes supervision when you go beyond enforcing the terms of the contract. If the contractor is directed to perform the contract services in a specific manner, the line is being crossed. In such a situation, the COR's actions would be equivalent to using the contractor's personnel as if they were government employees and would constitute transforming the contract into one for personal services.

(2) The COR shall monitor contractor performance to see that inefficient or wasteful methods are not being used. If such practices are observed, the COR is responsible for taking reasonable and timely action to alert the contractor and the PCO to the situation.

(3) The COR will take timely action to alert the PCO to any potential performance problems. If performance schedule slippage is detected, the COR should determine the factors causing the delay and report them to the PCO, along with the contractor's proposed actions to eliminate or overcome these factors and recover the slippage. Once a recovery plan has been put in place, the COR is responsible for monitoring the recovery and keeping the PCO advised of progress.

(4) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a Contractor Performance Assessment Report (CPAR) in the CPARS Automated Information System (AIS). The initial CPAR, under an eligible contract, must reflect evaluation of at least 180 days of contractor performance. The completed CPAR, including contractor comments if any, (NOTE: contractors are allowed 30 days to input their comments) should be available in the CPARS AIS for reviewing official (PCO) review no later than 270 days after start of contract performance. Subsequent CPARs covering any contract option periods should be ready at 1-year intervals thereafter.

c. Invoice Review and Approval/Inspection and Acceptance

(1) The COR is responsible for quality assurance of services performed and acceptance of the services or deliverables. The COR shall expeditiously review copies of the contractor's invoices or vouchers, certificate of performance and all other supporting documentation to determine the reasonableness of the billing. In making this determination, the COR must take into consideration all documentary information available and any information developed from personal observations.

(2) The COR must indicate either complete or partial concurrence with the contractor's invoice/voucher by executing the applicable certificate of performance furnished by the contractor. The COR must be cognizant of the invoicing procedures and prompt payment due dates detailed elsewhere in the contract.

(3) The COR will provide the PCO and the CAO with copies of acceptance documents such as Certificates of Performance.

(4) The COR shall work with the Contractor to obtain and execute a final invoice no more than 60 days after completion of contract performance. The COR shall ensure that the invoice is clearly marked as a "Final Invoice."

d. Contract Modifications. The COR is responsible for developing the statement of work for change orders or modifications and for preparing an independent government cost estimate of the effort described in the proposed statement of work.

e. Administrative Duties

(1) The COR shall take appropriate action on technical correspondence pertaining to the contract and for maintaining files on each contract. This includes all modifications, government cost estimates, contractor invoices/vouchers, certificates of performance, DD 250 forms and contractor's status reports.

(2) The COR shall maintain files on all correspondence relating to contractor performance, whether satisfactory or unsatisfactory, and on trip reports for all government personnel visiting the contractor's place of business for the purpose of discussing the contract.

(3) The COR must take prompt action to provide the PCO with any contractor or technical code request for change, deviation or waiver, along with any supporting analysis or other required documentation.

f. Government Furnished Property. When government property is to be furnished to the contractor, the COR will take the necessary steps to insure that it is furnished in a timely fashion and in proper condition for use. The COR will maintain adequate records to ensure that property furnished is returned and/or that material has been consumed in the performance of work.

g. Security. The COR is responsible for ensuring that any applicable security requirements are strictly adhered to.

h. Standards of Conduct. The COR is responsible for reading and complying with all applicable agency standards of conduct and conflict of interest instructions.

i. Written Report/Contract Completion Statement.

(1) The COR is responsible for timely preparation and submission to the PCO, of a written, annual evaluation of the contractors performance. The report shall be submitted within 30 days prior to the exercise of any contract option and 60 days after contract completion. The report shall include a written statement that services were received in accordance with the Contract terms and that the contract is now available for close-out. The report shall also include a statement as to the use made of any deliverables furnished by the contractor.

(2) If the Contractor Performance Assessment Reporting System (CPARS) is applicable to the contract you are responsible for completing a final Contractor Performance Assessment Report (CPAR) in the CPARS with 30 days of contract completion.

(3) The COR is responsible for providing necessary assistance to the Contracting Officer in performing Contract Close-out in accordance with FAR 4.804, Closeout of Contract Files.

5. The Technical Assistant (TA), if appointed, is responsible for providing routine administration and monitoring assistance to the COR. The TA does not have the authority to provide any technical direction or clarification to the contract. Duties that may be performed by the TA are as follows:

a. Identify contractor deficiencies to the COR.

b. Review contract deliverables, recommend acceptance/rejection, and provide the COR with documentation to support the recommendation.

c. Assist in preparing the final report on contractor performance for the applicable contract in accordance with the format and procedures prescribed by the COR.

d. Identify contract noncompliance with reporting requirements to the COR.

e. Review contractor status and progress reports, identify deficiencies to the COR, and provide the COR with recommendations regarding acceptance, rejection, and/or Government technical clarification requests.

f. Review invoices and provide the COR with recommendations to facilitate COR certification of the invoice.

g. Provide the COR with timely input regarding technical clarifications for the statement of work, possible technical direction to provide the contractor, and recommend corrective actions.

h. Provide detailed written reports of any trip, meeting, or conversation to the COR subsequent to any interface between the TA and contractor.

(End of Text)

SECURITY ADMINISTRATION (SOLICITATION) (SEP 2015)

The highest level of security that will be required under this contract is Secret as designated on DD Form 254 attached hereto and made a part hereof.

The offeror shall indicate the name, address and telephone number of the cognizant security office;

The facilities to be utilized in the performance of this effort have been cleared to the **Secret** level.

The offeror should also provide the above information on all proposed subcontractors who will be required to have a security clearance.

(End of Text)

SECURITY ADMINISTRATION (CONTRACT) (SEP 2015)

The highest level of security required under this contract is **Secret** as designated on DD Form 254 attached hereto and made a part hereof.

The Commander, Defense Investigative Service, Director of Industrial Security, _____ **Region**, is designated Security Administrator for the purpose of administering all elements of military security hereunder.

(End of Text)

Overall Contract Inspection/Acceptance Locations

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0001	Inspection and Acceptance Location Both Destination Instructions: Inspection and acceptance shall be performed at N00171. DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0002	Inspection and Acceptance Location Both Destination Instructions: Inspection and Acceptance shall be performed at N00171. DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0003	Inspection and Acceptance Location Both Destination Instructions: Inspection and Acceptance shall be performed at N00171. DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0004	Inspection and Acceptance Location Both Destination Instructions: Inspection and acceptance shall be performed at N00171. DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR

	Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0005	Inspection and Acceptance Location Both Destination Instructions: Inspection and Acceptance shall be performed at N00171. DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0006	Inspection and Acceptance Location Both Destination Instructions: Inspection and acceptance shall be performed at N00171. DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 01 May 2026 to 30 Apr 2027 Period of Performance From 01 May 2026 To 30 Apr 2027	12 Months	Place of Performance DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0002	Delivery Period From 01 May 2027 to 30 Apr 2028 Period of Performance From 01 May 2027 To 30 Apr 2028	12 Months	Place of Performance DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0003	Delivery Period From 01 May 2028 to 30 Apr 2029 Period of Performance From 01 May 2028	12 Months	Place of Performance DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542

	To 30 Apr 2029		
Option Line Item 0004	Delivery Period From 01 May 2029 to 30 Apr 2030 Period of Performance From 01 May 2029 To 30 Apr 2030	12 Months	Place of Performance DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0005	Delivery Period From 01 May 2030 to 30 Apr 2031 Period of Performance From 01 May 2030 To 30 Apr 2031	12 Months	Place of Performance DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542
Option Line Item 0006	Delivery Period From 01 May 2031 to 31 Oct 2031 Period of Performance From 01 May 2031 To 31 Oct 2031	6 Months	Place of Performance DoDAAC: N00171 CountryCode: USA NAVAL DISTRICT WASHINGTON 1343 DAHLGREN AVE SE BLDG 1, WASHINGTON NAVY YARD DC 20374-5157 WASHINGTON NAVY YARD, DC 20374-5157 UNITED STATES Cynthia Churbuck, COR Email: cynthia.l.churbuck.civ@us.navy.mil Telephone: 202-685-0542

Continuation of Accounting and Appropriation Data

52.232-18 ADDENDUM

Pursuant to FAR clause 52.232-18, funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available to the Contracting Officer for this contract.

(End of Text)

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.222-41	Service Contract Labor Standards.	Aug 2018		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.222-42 Statement of Equivalent Rates for Federal Hires.

(May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
30084 - Engineering Technician IV	GS-7/38.6%
30085 - Engineering Technician V	GS-9/38.6%
30086 - Engineering Technician VI	GS-11/38.6%

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

- (1) Final Level 1 (Self).
- (2) Conditional Level 2 (Self).
- (3) Final Level 2 (Self).
- (4) Conditional Level 2 (C3PAO).
- (5) Final Level 2 (C3PAO).
- (6) Conditional Level 3 (DIBCAC).
- (7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: _____
Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Not Applicable

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

INVOICE 2-IN-1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	To be determined at the time of award.
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==

DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

To be determined at the time of award.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.204-2	Security Requirements.	Mar 2021		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.232-18	Availability of Funds.	Apr 1984		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.242-13	Bankruptcy.	Jul 1995		
52.247-34	F.o.b. Destination.	Jan 1991		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.239-7001	Information Assurance Contractor Training and Certification.	Jan 2008		
252.239-7010	Cloud Computing Services.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.219-14 Limitations on Subcontracting (DEVIATION 2021-O0008) (Oct 2022) Deviation 2021-O0008 (Feb 2023)

LIMITATIONS ON SUBCONTRACTING (FEB 2023) (DEVIATION 2021-O0008)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition.* Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to--

- (1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);
- (2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);
- (3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;
- (4) Orders expected to exceed the simplified acquisition threshold and that are--
 - (i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);
- (5) Orders, regardless of dollar value, that are--
 - (i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or
 - (ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and
- (6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

[Contracting Officer check as appropriate.]

☐ By the end of the base term of the contract and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.217-8 Option to Extend Services. (Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **7 days of contract expiration**.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **1 day of contract expiration**; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **7 days** before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **5 years**.

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/part-52>

<https://www.acquisition.gov/dfars/part-252-solicitation-provisions-and-contract-clauses>

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **DFARS** (48 CFR **Chapter 2**) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (Oct 2025) Deviation 2025-O0004 (Mar 2025)
(DEVIATION 2025-O0003 and 2025-O0004)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (MAR 2025)
(DEVIATION 2025-O0003 and 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (Dec 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☒ (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-6.

☐ (19) (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (Mar 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).

☐ (21) (i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (Nov 2016) of 52.219-9.

☐ (iii) Alternate II (Nov 2016) of 52.219-9.

☐ (iv) Alternate III (Jun 2020) of 52.219-9.

☐ (v) Alternate IV (Jan 2025) of 52.219-9.

☐ (22) (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (Mar 2020) of 52.219-13.

☐ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

☒ (26) (i) 52.219-28, Post Award Small Business Program Representation (Jan 2025) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (Mar 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

☒ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

☐ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).

☐ (33) [Reserved]

☐ (34) [Reserved]

☒ (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (Jul 2014) of 52.222-35.

☒ (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (Jul 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

☒ (39) (i) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

- ☐ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☒ (47) (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (Jan 2017) of 52.224-3.
- ☐ (48) (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (Oct 2022) of 52.225-1.
- ☐ (49) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (Jan 2025) of 52.225-3.
- ☐ (iv) Alternate III (Feb 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).
- ☐ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☐ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ☒ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).
- ☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

☐ (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (Apr 2003) of 52.247-64.

☐ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

☐ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118 (g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

- (v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).
- (vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii) (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).
- (B) Alternate I (Dec 2023) of 52.204-30.
- (viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.
- (ix) [Reserved]
- (x) [Reserved]
- (xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).
- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).
- (xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- ☒ (xvi) (A) 52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- (B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
- (B) Alternate I (Jan 2017) of 52.224-3.
- (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.
- (xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- (xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.
- (2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.
- (End of clause)

List of Contract Documents, Exhibits, or Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	Draft DD254	Contract Security Classification Specification (DD 254)		12 Feb 2026
02	Admiral Gooding Center Wage Determination	Wage Determination		11 Feb 2026
03	Past_Performance_Information_Form			11 Feb 2026
04	PAST_PERFORMANCE_REPORT_FORM			11 Feb 2026
05	Price Worksheet			11 Feb 2026

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Oct 2018)

INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

**REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT
(NOV 2021)**

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

I. GENERAL

The Government intends to award a Firm-Fixed-Price (FFP) Seaport NxG task order as a result of this solicitation in accordance with FAR Subpart 16.505. Award will be made to that offeror whose proposal is most advantageous to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and award a task order based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a technical, past performance, and price standpoint. However, in accordance with Clause H.5 of the MAC contract, the Government may contact any or all offerors with questions concerning their responses as permitted under FAR Part 16. The Government reserves the right to award a FFP task order to other than the lowest priced offeror; award a FFP task order without discussions; and/or award a FFP task order after discussions, whichever is in the best interest of the Government.

The proposal shall consist of the following separate volumes:

- Volume 1: Factor I - Facilities Clearance**
 - Factor II - Technical Approach**
 - Sub-Factor 1 - Performance Approach**
 - Sub-Factor 2 - Management Approach**
- Volume 2: Factor III - Past Performance**
- Volume 3: Factor IV - Price**

Each page of each copy shall be affixed with the following legend:

Source Selection Information - See FAR 2.101 and 3.104

The completion and submission of the items outlined in this section will constitute a proposal and will indicate the offeror's unconditional assent to the terms and conditions of this solicitation and any attachments and/or exhibits hereto. Alternate proposals are not authorized. Objections to any of the terms and conditions of the solicitation will constitute a deficiency (see FAR 15.001), which will make the offer unacceptable.

IMPORTANT NOTES:

(1) Offerors shall respond to all requirements of the solicitation. Offerors are cautioned not to alter the solicitation.

(2) In the event that any person who is not a bona fide employee of the offeror participated in the creation, formulation, or writing of any portion of the proposal, a certificate to this effect shall be included in the proposal which shall be signed by an officer of the offeror. Such certificate shall identify the name of the person who is not a bona fide employee, that person's employment capacity, the name of the person's firm, the relationship of that firm to the offeror, and the portion of the proposal in which the person participated.

(3) Offerors may submit questions regarding clarification of solicitation requirements via email to **Tierra Watson at tierra.k.watson.civ@us.navy.mil**. It is requested that all questions be received by **10:00 AM EST 17 March 2026** as time may not permit responses to questions received after that date to be prepared and issued prior to the receipt of proposals. For proposal purposes, the estimated effective date of the task order award and full contract performance is anticipated to start on **01 May 2026**.

(4) Proposals shall be submitted electronically no later than **10:00:00 AM EST 03 April 2026** via email to **Tierra Watson at tierra.k.watson.civ@us.navy.mil and Carlton Walton at carlton.t.walton.civ@us.navy.mil**. Offerors shall comply with the detailed instructions for the format and content of the proposals contained herein; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award.

II. REQUIREMENTS FOR PROPOSAL CONTENT

(1) Introduction and Purpose: This section specifies the format offerors shall use in this Request for Proposal (RFP). The intent is not to restrict offerors in the manner in which they will perform the work, but rather to ensure a certain degree of uniformity in the format of the responses for evaluation purposes.

(2) Each volume should contain the following items in addition to the other information required by this solicitation:

The cover should indicate the following:

- o Title of the proposal
- o Volume number (1, 2, or 3)
- o Solicitation number
- o Name and address of offeror, point of contact information (name, phone number, and email address), CAGE code, UEI number, and applicable tax identification number (TIN)
- o Identification if original or a copy of the proposal
- o Proposal validity until 01 May 2026

Table of Contents: The table of contents should provide sufficient detail as to allow the important elements to be easily located.

(3) Requirements for Style: Each offeror shall submit a proposal that clearly and concisely describes and defines the offeror's response to the requirements contained in the solicitation. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired. Elaborate artwork, expensive paper or bindings, and expensive visual or other presentation aids are neither necessary nor

desired. The proposal shall contain all the pertinent information in sufficient detail in the one area of the proposal where it contributes most critically to the discussion of the same information. When necessary, offerors shall refer to the initial discussion and identify its location within the submitted proposal.

(4) Proposal Page Limitations:

Title	Page Limit*
Volume 1: Factor I - Facilities Clearance	No limit
Volume 1: Factor II - Technical Approach	20 Pages
Volume 2: Factor III: Past Performance	15 pages
Volume 3: Factor IV: Price	No limit

All submission and attachments shall be in Adobe Acrobat, Microsoft Office Word or Excel. Submissions are page limited to the maximum number of pages as defined above. These page limitations are inclusive of the executive summary and any charts, diagrams, and/or other graphics. Graphics (including tables) in the proposal may use an alternative font with 8-point size type or larger. Each "page" is defined as one sheet, 8 1/2" x 11", with at least one inch margins on all sides, using a font with a point size of 12 or greater (e.g., "Times New Roman" style with 12-point font). Lines shall, at a minimum, be selected as single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. Multiple pages, double pages, two-sided pages, or foldouts will count as an equivalent number of 8 1/2" x 11" pages. The offeror is permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of figures, compliance matrix, acronyms, table of contents, tabs, and dividers.

Pages submitted in excess of the page limitations described above will not be evaluated.

*Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal.

III. PROPOSAL CONTENT:

Volume 1: Non-Price Proposal

The Non-Price Proposal evaluation factors are listed below:

Factor I - Facility Clearance

The offeror shall provide proof/verification that it possesses a current Secret Facilities clearance at time of proposal submission. The proof /verification shall be in the form of Defense Security Service verification obtained within 30 days prior to close of solicitation and shall include the following: Cage Code, Facility Name, Physical Location, Facility Clearance Status/Level, Status Date/Issue Date, Safeguarding Level, Authorized Access To, FCL Limitation, Facility Security Officer, Facility Security Officer Phone Number, DSS Field Office, and DSS Field Office Phone Number.

Factor II - Technical Approach

This submission shall contain the following portion of the proposal, to include all data and information required for the evaluation of the below mentioned sub-factors, excluding any reference to the pricing aspects of each offer.

Sub-Factor 1 - Performance Approach

The offeror shall provide a complete performance approach that demonstrates its capabilities and understanding of, and ability to perform the requirements. Offeror shall:

- a) Describe an approach to demonstrate successfully performing the work as identified within the Paragraph 5.0, Requirements in the PWS;
- b) Describe an approach to demonstrate successfully performing the work as identified within Attachment C, Contractor Personnel Security

Requirements, to the PWS

Sub-Factor 2 - Management Approach

The approach should address the management plan and approach to transition-in, during full performance, and to transition-out of the contract. The management approach should address management for day-to-day operations as well as the approach for management, oversight and control of resources. Offeror shall:

- a) Describe an approach to manage personnel and ensure deliverables are assigned and delivered within the acceptable quality level per PWS paragraphs 3, Performance Standard, and 5.0, Requirements;
- b) Describe an approach to ensure personnel qualifications remain current for all contractor personnel engaged in the effort per PWS paragraphs 12.0, Personnel Qualifications, and 6.0 Training Requirements.

The Technical Approach is limited to 20 pages.

Volume 2: Factor III - Past Performance

To demonstrate its past performance, the offeror shall identify up to three (3) of its most relevant contracts performed within five (5) years of the solicitation issuance date. Those contracts must also reflect one (1) year of completed performance by the closing date of the solicitation. Offerors shall provide a detailed explanation demonstrating the relevance of the contracts to the requirements of the solicitation.

For purposes of this solicitation, a contract is defined as a single contract or a single task order placed under an IDIQ contract, a Blanket Purchase Agreement (BPA), or a Federal Supply Schedule. **Offerors shall not submit the IDIQ contract, FSS contract, or BPA itself as a reference.** Offerors may submit a combination of no more than three (3) delivery orders (DOs), task orders (TOs), technical direction letters (TDLs), and/or technical area tasks (TATs) placed under an ID/IQ or BPA as one of the three examples of past performance. Such a combination must also meet the requirements stated above: each individual example in the combination must have been performed within five (5) years of the solicitation issuance date and demonstrate at least one (1) year of completed performance by the closing date of the solicitation. **If a combination of DOs, TOs, TDLs and or TATs are used as a past performance example, the offeror shall state the specific experience claimed, period of performance, and dollar value of each. A Past Performance example that does not provide the level of detail required may not be evaluated.** No more than one combination of DOs, TOs, TDLs and or TATs is permitted in the past performance submittal.

If a proposed subcontractor's past performance is provided as part of the three (3) of its most relevant contracts or efforts, the percentage and type of work to be done by the subcontractor on the solicitation requirement must be stated. The offeror's submittal shall also detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. A Past Performance example which does not detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform may not be evaluated.

If the prime offeror or intended subcontractor/partner submits a past performance example in which it served as a subcontractor, the prime/sub/partner shall detail clearly the work that it performed and the magnitude (dollar value) of that subcontracted work only. A Past Performance example that does not differentiate between the overall contract effort and the subcontractor effort may not be evaluated.

The past performance of subcontractors who will be performing major or critical aspects of the solicitation will be considered as highly as a prime contractor's past performance.

Failure of offerors to provide the required information and level of specificity may result in the contract reference not being evaluated.

With respect to joint ventures, the procuring activity will consider work done individually by each member of the joint venture as well as any work done by the joint venture itself previously. Joint venture references must meet the temporal requirements described in section L (within five (5) years and a year of completed performance). Additionally, if a joint venture member submits a past performance reference, the joint venture member shall detail clearly the work that it performed in that effort and the magnitude (dollar value) of that work. A reference that does not differentiate between the overall contract effort and the joint venture member's effort for that reference may not be evaluated. The past performance of a joint venture member who will be performing major or critical aspects of the solicitation will be considered as highly as the joint venture's past performance.

The offeror shall complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation.

The following minimum information shall be provided within contractor submitted references:

- Contract Number/Task Order Number
- Contract Type
- Annual Contract Cost and total contract cost
- Period of Performance
- Description of Work
- Valid name, phone number and e-mail address of Contracting Officer, Contracting Officer's Representative or Prime Contractor (if company was subcontracted).
- Number of personnel (FTEs) performing per year (averaged)

In the description of work, offerors should provide a detailed explanation demonstrating the similarity of the contracts, in terms of scope, and magnitude, to the requirements of the solicitation for purposes of the relevancy review.

The offeror should complete a Past Performance Information Form (PPIF) for each reference submitted. The form is **Attachment 03** to this solicitation. The forms will count toward the Factor II page limit described above. For additional information regarding a particular reference beyond that which will fit on the form, the offeror may continue onto another sheet of paper. Such continuation sheet(s) for submitted references will count toward the Factor II page limit.

In addition to the information requested above, offerors shall contact their past performance references and request that each reference complete **Attachment 04** - Past Performance Report Form (PPRF) and e-mail the completed survey form directly to **Tierra Watson at tierra.k.watson.civ@us.navy.mil or Carlton Walton at carlton.t.walton.civ@us.navy.mil by the closing date of the solicitation**. The Government reserves the right to consider past performance report forms received after the due date of the solicitation and to contact references for verification or additional information.

Volume 3: Factor IV - Price Proposal

The Price Proposal shall include the completed solicitation documents. The price proposal shall include all elements of price and such other price information considered appropriate to support the offeror's proposal. The pricing information shall be completed in accordance with the following:

- (a) A completed section B "Supplies or Services and Price" submitted electronically via the Seaport NxG services site.
 - (b) All supplemental information to support the proposed price. Such as:
 - 1. labor category/level of effort breakdown,
 - 2. labor category rates, and
 - 3. escalation explanation
 - (c) A completed and signed page 1 of the solicitation and a completed and signed page 1 of any amendments
 - (d) The completed Price Worksheet **Attachment 05**
 - (e) Unless completed in SAM, RFP Section, Representation, Certification and Other Statements of Vendors - completed by the offeror.
- (End of 52.212-1 ADDENDUM)

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Volume 1: Factor I - Facilities Clearance

Factor II - Technical Approach

Sub-Factor 1 - Performance Approach

Sub-Factor 2 - Management Approach

Volume 2: Factor III - Past Performance

Volume 3: Factor IV - Price

The evaluation of proposals will consider the Non-Price Proposal to be **significantly more important** than the Price Proposal. Within the Non-Price Proposal, Factor II - Technical Approach is **more important** than Factor III - Past Performance. The Technical Approach will be comprised of Sub-factor 1 - Performance Approach and Sub-factor 2 - Management Approach, which are of equal importance.

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Evaluation Criteria:

The Government intends to award a Firm-Fixed-Price (FFP) Seaport NxG Task Order to the responsible offeror whose proposal represents the best value after the evaluation in accordance with the factors in the solicitation.

The Government intends to award the task order without discussions. The establishment of a competitive range is not anticipated. Accordingly, each offeror should submit its most favorable terms from a technical, past performance, and price standpoint. However, the Government reserves the right to establish a competitive range and conduct discussions if later determined by the Contracting Officer to be necessary. Offerors simply providing general statements or paraphrasing/parroting the PWS in whole or in part shall be rated unacceptable.

The selection of an offeror for award will be conducted in two phases. Phase I will consist of the evaluation of Factor I - Facilities Clearance. Offerors receiving an "Acceptable" rating in Phase I shall move on to Phase II. Phase II will consist of the evaluation of Factor II - Technical Approach, Factor III - Past Performance, and Factor IV - Price. During Phase II, the evaluation of proposals will consider the Non-Price Proposal to be **significantly more important** than the Price Proposal. Within the Non-Price Proposal, Factor II - Technical Approach is **more important** than Factor III - Past Performance. The Technical Approach will be comprised of Sub-factor 1 - Performance Approach and Sub-factor 2 - Management Approach, which are of equal importance.

Offers shall be ordered according to price, inclusive of all option pricing, from lowest to highest, after a pass rating is received for the Facility Clearance. An offeror's proposed prices will be determined by adding all extended amounts for the CLINs/SCLINs. If the lowest priced offer is evaluated to have a Technical Approach rating of "Outstanding" and a Past Performance Confidence Assessment rating of "Substantial Confidence", that offer represents the best value for the Government and the evaluation process stops at this point.

Award shall be made to that offeror without further consideration of any other offers. However, if the lowest priced offeror is not evaluated to have an "Outstanding" Technical Approach rating and a "Substantial Confidence" Past Performance Confidence Assessment rating, the next lowest priced offeror will be evaluated and the process will continue (in order of price from lowest to highest) until an offeror is evaluated to have an "Outstanding" Technical Approach rating and a "Substantial Confidence" Past Performance Confidence Assessment rating. At that time, the Source Selection Authority shall make an integrated assessment best value award decision between the offer rated with an "Outstanding" Technical Approach and Substantial Confidence and all lower priced offerors. If no proposals are rated to an "Outstanding" Technical Approach rating and a "Substantial Confidence" Past Performance Confidence Assessment rating, the Contracting Officer shall make an integrated best value award decision from the awardable offers.

Volume 1: Non-Price Proposal

Phase I

Factor I - Facility Clearance

Factor I will be evaluated on an "Acceptable/Unacceptable" basis on its submission of the proof/verification of its Secret Facilities Clearance. This will be evaluated during Phase I on an "Acceptable/Unacceptable" basis utilizing the Technical "Acceptable/Unacceptable" ratings in **Table 1** below.

Table 1: Technical Acceptable/Unacceptable Ratings Table

Rating	Description
Acceptable	Proposal clearly meets the minimum requirements of the solicitation.
Unacceptable	Proposal does not clearly meet the minimum requirements of the solicitation

Phase II

Factor II - Technical Approach

Sub-Factor 1 - Performance Approach

The offeror's performance approach and mitigation will be evaluated on its feasibility, comprehensiveness, and the degree to which the offeror demonstrates its understanding of, and capability to successfully accomplish the staffing requirements of the solicitation.

Sub-Factor 2 - Management Approach

The offeror's overall management approach and mitigation will be evaluated on its feasibility, its comprehensiveness, and the degree to which the offeror demonstrates its understanding of the technical requirements and operation environment.

A combined Technical/Risk rating will be utilized in the evaluation of the Sub-Factors 1 and 2. The combined technical/risk rating includes a consideration of risk in conjunction with the **strengths, weaknesses, significant weaknesses, and deficiencies** in determining technical ratings. Combined technical/risk evaluations will utilize the technical/risk ratings listed in **Table 2** below.

For the Technical Approach factor, **Table 2** below will be utilized for the assignment of ratings. The Technical Approach (Factor II) evaluation will be based on each offeror's response to the requirements of Section L Instructions to Offerors included in the solicitation. In the execution of the evaluations, both the offeror's Technical Approach to meeting the Government's requirements as defined in the solicitation and the Risk related to this proposed approach will be assessed.

NOTE: A rating of "Marginal" for any factor or sub-factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. An offer which includes a "Marginal" rating is not eligible for award if award is made on initial offers. Offerors that receive a "Marginal" rating are considered to be susceptible to correction if the Source Selection Authority determines that an exchange is appropriate and said exchange is conducted.

A rating of "Unacceptable" for any factor or sub-factor means the offeror's proposal will not be further evaluated and it is not awardable. Offerors simply providing general statements or paraphrasing/parroting the PWS in whole or in any part may result in a rating of "Unacceptable".

Table 2: Combined Technical/Risk Table

Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and thus, contains one or more deficiencies and is un-awardable.

The Technical Approach section is limited to 20 pages.

Factor III - Past Performance:

The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to meet the contract's requirements based on the quality of a demonstrated record of recent and relevant performance. There are three aspects to the past performance evaluation: recency, relevancy, and quality. These are combined to establish a single performance confidence assessment rating for each offeror.

Past Performance Recency: Recency is the first aspect of the past performance evaluation and is the time period during which past performance references are considered relevant. Recency is critical to establishing the relevancy of past performance information. For purposes of this solicitation, recent past performance is performance that has taken place within five (5) years of the issuance date of this solicitation. Performance outside of this stated period will not be considered for evaluation purposes.

Past Performance Relevancy: Regarding relevancy, each past performance reference under each offeror's Past Performance submission will be evaluated to determine its scope and magnitude relative to the instant requirement. The following definitions will apply to this evaluation:

Scope: Experience in the areas described in the PWS.

Magnitude: The similarity of the dollar value of actually performed work that exists between the PWS and the offeror's referenced contracts during the stated five-year period established by the solicitation.

The references will be evaluated in the aggregate to allow offerors who may not have the entire scope and magnitude of the requirement under one individual contract or order to still be evaluated for quality if past performance with the full scope and magnitude of the requirement can be demonstrated within the allotted number of references as described above. The aggregate of each offeror's past performance references in terms of scope and magnitude will result in the assessed overall relevance of that offeror's past performance.

The relevancy rating assigned to each past performance reference will be considered in determining the weight to be given to that reference in the overall Past Performance Confidence Assessment. **References determined to be "Not Relevant" will not be further considered.** Similarly, the quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. In determining the rating for the past performance factor, past performance of greater relevancy will have more influence on the past performance confidence assessment than past performance of lesser relevance. **Table 3** below will be used to determine relevancy ratings.

Table 3: Past Performance Relevancy Ratings Table

Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort this solicitation requires.

Past Performance Quality: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance. The Government will review all past performance information collected and determine the quality of the offeror's performance, including general trends and usefulness of the information, and will incorporate this into the performance confidence assessment.

Past Performance Confidence Assessment: The overall assigned rating for past performance will be the Past Performance Confidence Assessment rating, defined in **Table 4** below. The assignment of this rating will be based on the overall quality of the recent and relevant past performance and will also consider the source of the information, the context of the data, and general trends in the offeror's performance. The quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. Evaluation will focus only on work already performed. Work yet-to-be performed and work not reflecting one year of completed performance by the solicitation issuance date will not be considered.

If the offeror's aggregated past performance is determined to be not relevant as defined in the solicitation, then the quality of the offeror's past performance will not be evaluated through a confidence assessment and the past performance factor will be rated as "Neutral Confidence". If a offeror's aggregate past performance is determined to be relevant, then each past performance reference under the offeror's past performance submission that contributed to the determination of aggregate relevance (i.e., each reference that is rated at least somewhat relevant) will be evaluated to determine the quality of the offeror's performance under that reference. The quality of performance on contract references that are rated "Not Relevant" is not evaluated even when the overall past performance is found to be relevant.

In the case of offerors for which there is no information on past contract performance or where past contract performance information is not available, the offeror may not be evaluated favorably or unfavorably on the past performance factor. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "**Neutral Confidence**". Although an offeror that lacks recent, relevant past performance may not be rated favorably or unfavorably with regard to past performance, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating provides better value to the Government than a "Neutral Confidence" past performance rating.

In order to evaluate past performance, the Government may also utilize existing data sources, including the Contractor Performance Assessment Reporting System (CPARS), the Electronic Subcontract Reporting System (eSRS), or other databases; communication with points of contact in the offeror's customer's organization, which could include private sector requirements and contracts personnel, Administrative Contracting Officers, Defense Contract Management Agency (DCMA) personnel, Procuring Contracting Officers, Contracting Officer's Representatives, and other Government activity requirements personnel. The Government may verify past performance information. The Government may contact some or all of the references provided, as appropriate, and may collect information through questionnaires, telephone interviews, and existing data sources. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. This information will be used for the evaluation of past performance.

The past performance factor evaluation and past performance confidence assessment rating is separate and distinct from the contracting officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating the relative capability of the offeror and other competitors to successfully meet the requirements of the solicitation.

Table 4: Past Performance Confidence Assessment Ratings Table

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

Note: A rating of "Limited Confidence" for the past performance factor means that the offeror's quote is not awardable without a change or changes to the offeror's proposal. A proposal that includes a "Limited Confidence" rating is considered to be susceptible to correction if the contracting officer determines an exchange is appropriate and said exchange is conducted. A rating of "No Confidence" for the past performance factor means that the offeror's proposal is not awardable and is not susceptible to correction.

The Past Performance section is limited to 15 pages.

Volume 3: Factor IV - Price:

For the purpose of preparing a price proposal, the offeror shall assume that the basic period of performance shall be one (1) year plus four (4) twelve (12)-month option years. FAR 52.217-8 is included to extend services up to six (6) months, if needed.

	Period of Performance
Base Year	01 May 2026 - 30 April 2027

Option Year I	01 May 2027 - 30 April 2028
Option Year II	01 May 2028 - 30 April 2029
Option Year III	01 May 2029 - 30 April 2030
Option Year IV	01 May 2030 - 30 April 2031
6 months (FAR 52.217-8)	01 May 2031 - 31 October 2031

Total price will be evaluated taking into account the total FFP for the base year and option periods. Price analysis will be used to evaluate price reasonableness.

All options, including option FAR 52.217-8 will be evaluated pursuant to solicitation provision FAR 52.217-5, Evaluation of Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

The Government may evaluate any and all information submitted by the vendor to support the reasonableness of prices proposed. The method of evaluation used by the Contracting Officer is solely within the discretion of the Contracting Officer.

Although price is the not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the offer. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, non-price proposals, price could become the factor in determining which offerors shall receive the award.

Source Selection Decision Document - The Contracting Officer evaluation of the Non-Price Proposal will perform a best value or trade-off determination. Said determination will be in narrative format and will compare the relative merits of the proposals based on the evaluation and award criteria set forth in the solicitation.

Written Notice - A written notice of award or acceptance of an offer e-mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

DEFINITIONS:

Strength - An aspect of an offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.

Weakness - A flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness - A flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency - A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk - (as it pertains to source selection) - The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

(End of 52.212-2 ADDENDUM)

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.237-1	Site Visit.	Apr 1984		
52.217-5	Evaluation of Options.	Jul 1990		
52.204-7	System for Award Management.	Nov 2024		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.239-7098	Prohibition on Contracting to Maintain or Establish a Computer Network Unless Such Network is Designed to Block Access to Certain Websites - Representation (Deviation 2021-O0003)	Apr 2021	Deviation 2021-O0003	Apr 2021
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations- Representation (Deviation 2024-O0006, Revision 1)	Mar 2024	Deviation 2024-O0006	Mar 2024
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems—Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.219-1 Small Business Program Representations. (Alternate I) (Feb 2024) Alternate I (Feb 2024)

Alternate I (FEB 2024). As prescribed in 19.309 (a)(2) add the following paragraph (c)(10) to the basic provision:

(10) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

- ☐ Black American.
- ☐ Hispanic American.
- ☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
- ☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
- ☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
- ☐ Individual/concern, other than one of the preceding.

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (Jun 2020)

TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)

(a) *Definitions.* As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.233-2 Service of Protest.

(Sep 2006)

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Tierra Watson

NAVSUP FLC Norfolk

1968 Gilbert Street, STE 600

Norfolk, VA 23511

757-443-1395

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS-REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures.*

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/far/part-52>

<https://www.acquisition.gov/dfars/part-252-solicitation-provisions-and-contract-clauses>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any **DFARS** (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)

(Oct 2025) Deviation 2025-O0004 (Mar 2025)

OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025)
(DEVIATION 2025-O0003 AND 2025-O0004)

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395 (b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended. "Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1)
 - (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
 - (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

- (1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or
- (2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

- (1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern.* The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.] [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352).* (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of

Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1)

(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)

(1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i)

(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end

product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.
==
—
==

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
==	==
==	==
==	==

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples*.

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
==	==
==	==

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: ____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other ____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (e.g., 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u)

(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

DFARS Clauses Incorporated by Full Text

252.239-7009 Representation of Use of Cloud Computing.

(Sep 2015)

REPRESENTATION OF USE OF CLOUD COMPUTING (SEP 2015)

(a) *Definition.* "Cloud computing," as used in this provision, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

(b) The Offeror shall indicate by checking the appropriate blank in paragraph (c) of this provision whether the use of cloud computing is anticipated under the resultant contract.

(c) *Representation.* The Offeror represents that it-

☐ Does anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

☐ Does not anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

(End of provision)

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: ____ [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers*. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)